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IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT
OF THE STATE OF FLORIDA, IN AND FOR HILLSBOROUGH COUNTY
FAMILY LAW DIVISION

IN RE: THE MARRIAGE OF:
SARAH HANSON,

Petitioner/Wife,

Case No. 24-DR-001150

and

Division: "D"

CHRISTOPHER HANSON,

Respondent/Husband.
_____/

TRANSCRIPT OF PROCEEDINGS

BEFORE:	HONORABLE KELLEY A. AYERS
TAKEN AT:	Hillsborough County Courthouse Edgecomb Tampa, Florida
DATE:	February 12, 2025
TIME:	Commencing at 12:30-1:48 p.m.
REPORTED BY:	Gina M. Herrera, RPR Notary Public, State of Florida

APPEARANCES:

For the Petitioner/Wife:

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I N D E X T O P R O C E E D I N G S

Witness or Proceedings	Page
SARAH HANSON	26
Direct Examination By Mr. Hanson:	26
CERTIFICATE OF REPORTER	75

P R O C E E D I N G S

THE COURT: All right. We're here on Hanson v. Hanson, 2024-DR-1150. We have present starting with Ms. Hanson's side. Could you please make your appearances?

MR. DAVIS: Scott Davis appearing for the Petitioner, Sarah Hanson.

THE COURT: Mr. Hanson?

MR. HANSON: Chris Hanson appearing for myself.

THE COURT: Let the record reflect that I had a conference with counsels prior to starting this hearing. I cautioned them on their conduct with respect to this case and the numerous correspondence that are being provided to my judicial assistant and how we are going to proceed thus far.

I'm also going to do a sua sponte motion setting an order to show cause on why I should not limit the communications between counsels and my judicial assistant and communications between counsels. When you come back for your order to show cause I will hear why you do not believe I should limit your communications with my JA and then you will argument against each other on while I shouldn't limit your communications between each other. And I will select that date before we leave.

We're here on four hearings. Everyone is going to have exactly 30 minutes and I'm going to be timing you. That is to present your motion and to defend your motion. Let me see who filed first.

MR. DAVIS: Your Honor, while you're doing that may I address the Court extremely briefly?

THE COURT: Of course.

MR. DAVIS: I have almost fully prepared a motion asking the Court to do just that. So I am absolutely not opposed to the Court entering an order regarding the communications.

THE COURT: Okay. We're going to do an order to show cause and at that same time you can notice your motion. And you did want to say something, what did you want to say, Mr. Hanson?

MR. HANSON: Your Honor, I understand what you're saying about the emails to your JA and I apologize for that. It's confusion. I just, you know, I don't know what to do. So I understand what I need to fix there. In terms of my communications with Mr. Davis. I don't know what you're referring to. I'm proud of everything that I have done in terms of dealing with Mr. Davis. So I don't understand what is problematic about my communications and if I don't understand what is

problematic I can't fix it.

THE COURT: I can't read them and neither can my JA, so that's what she's been trying to explain to you. Everything has to be in the court file. But it's my understanding from my judicial assistant that all of your communications -- she showed me the paper, I did not read it, but she said, "Mr. Hanson, please list the motions that you want to have heard." And instead I saw two pages of paragraphs. That's not what she asked you.

And it's my understanding that you are sending communications that you have with Mr. Davis. You are sending communications that you have with [redacted] So all of that cannot be done. She's there to schedule and answer simple questions and that's it. It's my understanding from my judicial assistant that you are forwarding emails between the two of you to her.

MR. HANSON: So --

THE COURT: That's not appropriate.

MR. HANSON: -- I'm not sure that I've done that, but I can E-file them.

THE COURT: You can E-file anything.

MR. HANSON: I'm sorry.

THE COURT: If you want a record -- she tells me

that you keep asking for a record, that's where your record is going to be made. The emails to my judicial assistant are not admissible.

MR. HANSON: I understand.

THE COURT: So, I mean, she's there -- people are frustrated in this process. So she has to deal with frustration and she doesn't mind doing that, but it can't consume her whole day. I have 850 cases and I know you've already said that you don't think I think your case is important. I absolutely do. But she has to attend to everyone.

MR. HANSON: Your Honor, I didn't say that. I'll look back. I can show you in the record.

THE COURT: I'm not holding it against you. I just want you to know your case is important to me. Your first motion was filed on December 13th, 2024 and it's Wife's Motion to Compel Discovery. If you will please note that we are starting at 12:40.

MR. DAVIS: Yes, ma'am.

THE COURT: Go ahead.

MR. DAVIS: Has the Court had a chance to review the motion?

THE COURT: Yes. But you have a record.

MR. DAVIS: Yes, ma'am. I think the motion speaks for itself. There are documents that

Mr. Hanson did not provide relating to mandatory disclosure. We sent him a good faith letter on December 2nd through prior counsel, Ms. Hodz. We identified the missing and complete disclosure that's on Page 2 and 3 of the motion. I'm happy to go through, but I don't want to waste the Court's time.

THE COURT: It is just you have a record. So it's up to you.

MR. DAVIS: It's in the record to the extent it's in the motion and I'm referring to it.

THE COURT: It's in Paragraph 7?

MR. DAVIS: Yes, ma'am.

THE COURT: On Page 2?

MR. DAVIS: Yes, ma'am. All the way through Page 3. And it's also Exhibit A is the good faith letter which identifies the same documents. I will tell the Court and I have emails for the Court to review regarding these issues.

THE COURT: Have any of the items Exhibit A 1 through 8 been provided since you filed the motion?

MR. DAVIS: No, ma'am.

THE COURT: And what are these emails that you're going to show me?

MR. DAVIS: The first email is dated December 13th, 2024 from Mr. Hanson to me over the

copy to Ms. Hanson regarding mandatory disclosures. And the relevent portion I've highlighted on all the copies as I mentioned some of the records have to be mailed. I never went to either attorney's office to get them scanned which basically suggests that he has them and Helene, referring to the hurricane, rearranged my house very well. I will try to find the records and get them scanned or mail you copies.

And then the other email is January 7th, 2025, Page 2. I also highlighted the relevent portion. And I said I did find the records and had to be mailed to him. Should take care of the motion to compel. It's a large stack of records says he doesn't have a good scanner and wants to drop them off at my office, which I don't have an office, and have me scan them for him. Which respectfully is not for me do. He can mail them to my post office box or he can procure a scanner or go to any office place like Office Max or UPS store and have them scanned.

THE COURT: Right.

MR. DAVIS: And he hasn't provided any of them.

THE COURT: All right. Mr. Hanson, did you have an opportunity to look at Exhibit A on that motion, please?

MR. HANSON: Is that the email that you just

described?

THE COURT: No. I'm showing him Exhibit A to your motion.

MR. DAVIS: Yes, ma'am. While he's reviewing that, the only other thing I wanted to say is the December 18th email was 57 days ago and January 7, email was 37 days ago. So it has been plenty of time to comply.

THE COURT: Mr. Hanson, have you complied with that discovery list?

MR. HANSON: Well, Your Honor, my argument is based upon relevance and, you know, my argument all along has been that Mrs. Hanson doesn't need any of these documents. She doesn't want them.

THE COURT: Okay. What do you do? If you think they're not relevant what do you do?

MR. HANSON: I'm object to it.

THE COURT: Well, you have to file an objection so I can rule on it.

MR. HANSON: Your Honor, with all due respect I've had to file due process arguments. I've had to research all different things. I'm doing the best I can. I'm sleeping three hours a night. I'm really trying.

THE COURT: How long do you need to respond to

that? It -- you have to provide the documents or you have to go item by item and tell me your specific legal objection and then set it for hearing. So how long do you need to do either provide the documents or file an objection? I don't need anything but just how long do you need?

MR. HANSON: Your Honor, I'm not trying to ignore you. I'm just trying to think.

THE COURT: Take your time.

MR. HANSON: The other things I'm trying to do and prioritize.

THE COURT: Take your time.

MR. HANSON: I don't know what comes first and what doesn't. I've already got four things --

THE COURT: I don't need an explanation. You just take the time and tell me how many days you need.

MR. HANSON: Unless there is some new due date for something I'm not aware of I think I should be able to do that in 10 days. Although I'm actually okay arguing it now. My argument --

THE COURT: You can't. You have to file an objection because he has the right to review the objections and be prepared to come in and tell me why he thinks your legal objection is not correct. So

you have to go through each document, number them -- each request numbering them and telling me your legal objection as to why you should not provide it. So 10 days is not a problem. So today is the 12th. So how about the 24th? And that gives you two extra weekends.

MR. HANSON: Okay.

THE COURT: So that's 12 days. So your response will be due on February 24th or the documents provided on February 24th. And it can be and/or. You might to want give some and object to some. So it's your choice. All right.

MR. DAVIS: May I address the Court?

THE COURT: Yes.

MR. DAVIS: Judge, we were here on Mr. Hanson's motion to compel several months ago and the Court granted that as mandatory disclosure and found entitlement to fees and I would ask that Ms. Hanson be treated the same in that regard and that the Court find entitlement to fees and reserve on the reasonableness and amount.

THE COURT: I'll reserve on fees all together.

MR. DAVIS: Yes, ma'am.

MR. HANSON: Your Honor, may I address that?

THE COURT: Yes.

MR. HANSON: I mean, the facts matter, right?

THE COURT: Right. So I didn't find entitlement. I'm going to wait to see what you say. If your objections are all granted, do you think I'm going to give him fees? Probably not. So I'm going to reserve completely until I see what your objections are.

MR. HANSON: I'll have a chance to explain the difference in terms --

THE COURT: Absolutely.

MR. HANSON: -- of timelines and --

THE COURT: And just because I know you brought this up to my judicial assistant too. There is only a few instances where I can rule without a hearing. And one of them is reconsideration and rehearing. And I don't know if you recall you've already filed a motion for rehearing with respect to the Hodz law firm and I granted it and let you have a hearing. So I did do that.

But on reconsideration and rehearing if there is no new information and especially yours was the same argument that we've already dealt with I have a right to enter an order without a hearing. But that is one of the few occasions when I do it. So, of course, if he's seeking fees you're going to get a hearing on

it, sir. So next up --

MR. HANSON: I'm sorry, Your Honor, but in terms of the award for fees, you may award fees without me getting a chance to argue that?

THE COURT: Absolutely not.

MR. HANSON: You may award entitlement to fees?

THE COURT: Yes.

MR. HANSON: Then I would like to make a record.

THE COURT: I didn't do that.

MR. HANSON: But you are saying you can entering an order --

THE COURT: I reserved on entitlement and amount.

MR. HANSON: I thought you said you can enter an order providing entitlement without a hearing.

THE COURT: No, I can do it right here at this hearing, but I'm not doing it.

MR. HANSON: Okay. So I'll have a chance to argue to the Court before any entitlement to fees are found.

THE COURT: He filed a motion to compel discovery. In this he asked me to award fees. I just said, "No, I'm reserving." Which means I didn't grant fees. I didn't deny fees. I didn't grant an entitlement. Versus he just pointed out when you

came before with your motion to compel or contempt I gave a reservation to fees. So you're going to get those fees, you just got to come back and talk to me about the amount. I didn't even give them reservation -- I'm sorry. I didn't even give them entitlement.

MR. HANSON: I guess the things I'm confused about is you mentioned you could enter an order without having a hearing on the issue.

THE COURT: No. I can enter at this hearing just like I did for you when you came and said they didn't complete their mandatory disclosure, your lawyer asked me for entitlement to fees, I thought you were entitled to them and I gave them to. I'm not giving them entitlement today.

MR. HANSON: Okay. So my only question is I'll have a chance to argue about whether you're going to order entitlement before the Court before you order entitlement?

THE COURT: And a hearing.

MR. HANSON: Okay. Thank you, Your Honor.

THE COURT: You're welcome. All right. So next up I have filed on December 18th, 2024 Husband's -- Respondent's Motion for Enforcement and Finding of Contempt for Failure to Comply with the Court's Order

on Mandatory Disclosures. And that would be yours, Mr. Hanson. Do you need a moment to locate that?

MR. HANSON: Sure.

THE COURT: All right. Do you need a copy, Mr. Hanson?

MR. HANSON: I have a copy. I have a couple of copies. I misplaced the one I had notes on. But that's okay, Your Honor. Are you ready for me to go ahead?

THE COURT: Yes, I am.

MR. HANSON: The motion relates to mandatory disclosures, but it all goes back to the single issue that I said would come up in the case when I first obtained an attorney. Actually, when I first filed a pleading back in May at Document No. 2022, I explained there is an issue where I need discovery into our finances based upon her reaction to mandatory disclosure requirements and things that were going on in the marriage and that was the only issue in the case.

We had navigated everything without getting attorneys and it was just that issue where when I told her that was a redline for me she responded by sending me 16 pages of interrogatories requesting everything from medical records to education records

going back to 20-plus years. So I want the Court to view this within that lens.

MR. DAVIS: I respectfully have to object to relevance and I'm happy to expound.

THE COURT: What is your objection with respect to relevance?

MR. DAVIS: Relevance because this is did she or did she not comply with mandatory disclosure. That's it. It's not the history. It's not interrogatories. It's not other things.

THE COURT: Okay. Did she comply with mandatory disclosures?

MR. HANSON: No, Your Honor.

THE COURT: Can you give me an example of what she didn't comply with?

MR. HANSON: She has not complied with the requirements of, I believe, it's 12.285 with respect to the months where one must swear that they had no financial interest other than those disclosed.

THE COURT: So what are you missing?

MR. HANSON: But, Your Honor, there is more to it. It's not that she doesn't comply with mandatory disclosures, but it's a pattern of intentional conduct meant to delay and conceal things and that's what I don't know why I'm not able to get out to the

Court, but all Mrs. Hanson and Mr. Davis' conduct relates to delaying things and concealing records. So if you could look at document --

THE COURT: Well, there is a form that you have to sign when you comply with mandatory disclosure. So you need to look at that list of mandatory disclosures and you need to tell me what she didn't comply with so I can make sure she does. It's very simple.

MR. HANSON: But, Your Honor, I feel like I keep getting pushed away from my large argument here which is we need to look at the pattern of delays and the harassment and burden that has now included going after my children and trying to put them to a guardian ad litem when I've asked Mr. Davis for any information to suggest that my kids are doing anything less than perfect.

THE COURT: I want to pause and make sure I keep you on time.

MR. HANSON: Sure.

THE COURT: This motion is for enforcement and finding of contempt for failure to comply with order on mandatory disclosure. All I can look at on this motion is -- if you've got another issue with her conduct unfortunately you have to file a motion.

Right now you're telling me they didn't comply with mandatory disclosures and I need to know what mandatory disclosures she didn't comply with so I make sure that she does.

MR. HANSON: See, Your Honor, obviously Mr. Davis wants to keep each of these separate. So the Court doesn't see the pattern of where everything he's doing is in violation of the ethical rules and designed to keep me from getting records. So that's the problem, it's the pattern. It's over, and over, and over again.

THE COURT: You filed this motion.

MR. HANSON: I know I did, Your Honor, but I'm trying to get you to understand.

THE COURT: Stop. You filed it as a singular motion. So you are asking me -- I'm bound by the confines of the law. You asked me for a motion to say that she didn't comply with mandatory disclosures. Then next I'm going to go and look at your next motion. If you have a motion that you somehow want me to sanction Ms. Hanson because of Mr. Davis' alleged conduct that would have to be a motion. Mr. Davis is only prepared to argue what you put in your motion and he has the opportunity to prepare to defend this. So I can't have you argue

something that's not in a motion. That's how the law works. It's not my rule. I can't do it.

MR. HANSON: Well, Your Honor, the other motion all of this stuff is included.

THE COURT: Well, let's go to that next and tell me how you want to handle this motion right now. What are you missing so I can ask Ms. Hanson --

MR. HANSON: Your Honor --

THE COURT: Stop. We can't talk over each other because we have this wonderful court reporter. So I need you to tell me what you are missing from the mandatory disclosures so I can ask Ms. Hanson how long she needs to get to you and you can get to her -- she can get it to you.

MR. HANSON: Your Honor, if you can look at Paragraph 15 --

THE COURT: Would love to.

MR. HANSON: -- No. 84. It starts Wife and Mr. Davis completed two of what they entitled certificate of compliance, although they make no attempt to comply with the requirements in Rule 12.285.

THE COURT: Perfect. Tell me how.

MR. HANSON: So the language in the original and amended certificates only certify that Wife had no

interest in any relevant accounts or assets in the last 12 months. Going back to the 12 months before she signed it. Which would take you to October of 2023.

THE COURT: Stop again. Tell me what documents you want.

MR. HANSON: Your Honor, I want them to certify that she has no other financial interests besides those that --

THE COURT: From what period to what period?

MR. HANSON: What is required in the mandatory Rule 12.285.

THE COURT: And my understanding is that's two years.

MR. HANSON: Your Honor, I believe two years and --

THE COURT: What bank statements do you want or do you want them to certify they don't exist? From what period to what period?

MR. HANSON: You know, the attorneys that withdrew on a days notice and the Court moved up the hearing a few weeks over my objection made it real difficult for me to review all the banks records, research new law and get up to speed with Florida due process and federal due process. So I can't tell you

the precise records. The problem is -- the main problem that I have is they're not even swearing that what they provided to me is everything. They're playing games. They stipulated to have the records to me June 28th --

THE COURT: Okay. We're not focusing.

MR. HANSON: Your Honor, that's directly relevent to my issue.

THE COURT: Stop. Look at Paragraph 17 you say Wife is only swearing that she had no interest in relevant accounts from October of 2023 forward and her attempts to save the marriage were already over. So are you saying that you would like to make sure that she didn't have any interest in relevant accounts from October 2023 or date of filing or to today?

MR. HANSON: No, backwards.

THE COURT: Okay. What -- you want before October 2023.

MR. HANSON: Right. Your Honor, she's gotten three years of records from me and I was the disclosing spouse. I disclosed all assets.

THE COURT: I don't need to know that.

MR. HANSON: It doesn't matter --

THE COURT: I just need to know what you want.

MR. HANSON: Your Honor --

THE COURT: Mr. Hanson, stop. I need you to tell me what records you want from her.

MR. HANSON: Three years of financial records going back from the date of the post marital agreement.

THE COURT: Could you remind what date that is or approximately?

MR. HANSON: I think it was October of 2023 or November 2023.

THE COURT: Okay. So you want three years prior to approximately October 2023 and that's when you did the postmarital or the premarital?

MR. HANSON: That was the postmarital agreement was around then.

THE COURT: So stop right there. So, Mr. Davis, what is your response to he's requesting three years of bank statements?

MR. HANSON: All financial documents, certification that she's provided me with everything.

THE COURT: That would be required in the mandatory disclosure, can we --

MR. HANSON: Well, anything she has an interest in. I believe that is mandatory disclosure.

THE COURT: I would concur with that. So he

would like you to comply with mandatory disclosure for the three years prior to October 2023. Your response, Mr. Davis.

MR. DAVIS: That's not what 12.285 provides. 12.285 provides for 12 months and date of filing for certain records. I'm happy to go through it. I brought the rule. And 24 months for others. The only thing off the top of my head that goes three back is deeds and tax records. But my position is respectfully Mr. Hanson has not actually identified a single document that he claims is required by the actual rule, not what he wants, the actual rule that hasn't been provided.

THE COURT: Response, Mr. Hanson?

MR. HANSON: Your Honor, the problem is that they're constantly skirting the rules to conceal information and this is another example of it. They delayed. They stipulated to produce things by June. Did nothing. No excuses. No responses to my attorneys. Then they trickle documents over to me gradually to put off enforcement of the Court's order entered on October 28th of 2024.

And so -- so I've looked at the documents. I'm not perfectly familiar with the rule. It confuses me every time I read it. I can't -- I was not focused

on getting you a list of documents. I'm focused on getting them to provide me with the truth of what they're required to provide me with. That's what I've been trying to do for nine months. And it's taken a huge toll on me, on my kids and there are things that are happening that I can't believe that a court of law is allowing.

So, you know, getting them to do three years, like I gave them three years for their interrogatories, that were filed against me as a warning shot, not to try and pursue her records. I think that's being very reasonable on my end when I disclosed all my assets at the time of the postmarital agreement. She didn't disclose anything. To the extent she told me anything about her finances before the postmarital agreement it's already inconsistent with what she has produced.

THE COURT: Hold for a second. Did you request of him documents outside of the rule, the mandatory disclosure rule, Mr. Davis? He keeps bringing that up at the hearing.

MR. DAVIS: My client did before I became her attorney when she was pro se.

THE COURT: She requested documents of him?

MR. DAVIS: Yes, ma'am.

THE COURT: So you as her attorney have not requested any documents outside the rule?

MR. DAVIS: No, ma'am.

THE COURT: Was it her that did it?

MR. HANSON: Perhaps ask why she did it.

THE COURT: Raise your right hand.

Thereupon,

SARAH HANSON,

a witness, having been duly sworn to tell the truth, the whole truth and nothing but the truth, was examined and testified as follows:

THE WIFE: Yes, Your Honor.

THE COURT: Don't forget we're on a time crunch, but if you want to ask her a couple questions related to this motion I'll allow you to do so.

MR. HANSON: Sure.

DIRECT EXAMINATION

BY MR. HANSON:

Q. What was the reason for filing those 16 pages of interrogatories at that date when we had already reached the marital separation agreement, the only dispute was whether I would get financial documents from you?

MR. DAVIS: Objection to relevance.

THE COURT: I'm going to allow her to answer the question.

A. I wasn't represented by an attorney and neither were you and you had sent me many text messages accusing me of criminal fraud and of attempting to defraud you and we were still pro se. At the time I filed a motion for the Court to monitor communication and I went to the form rules within the Florida Rules of Civil Procedure and I copied those interrogatories.

My thought process being I needed -- I didn't -- the financials I thought the interrogatory mirrored the mandatory disclosures and you had not given me an affidavit. I had given you an affidavit before the lawyers were involved. And the interrogatories I was actually trying to get your medical information because I was concerned over the children's welfare and the financial aspect of it I thought just mirrored the mandatory disclosures because I wasn't reviewing those either and --

THE COURT: Okay. We're not going to use this as an opportunity to say unkind things to each other. So she's answered your question. She was pro se and she was really fishing more for your medical records. That's why she sent out the things that she cut and pasted. She didn't do it -- Mr. Davis didn't do it. She did it. Just like you keep telling me you don't know what you're doing in family law. She didn't

know what she was doing in family law either.

MR. HANSON: I have quite a bit of correspondence I would like to provide around that timeframe and a follow-up question.

THE COURT: One more question. It can't be personal and getting back together and that stuff. It has to be about this motion.

MR. HANSON: Yes.

BY MR. HANSON:

Q. So you mentioned in your response that I threatened to pursue fraud against you. Did I ever threaten to pursue fraud against you in any way other than when I was pleading with you to let us avoid attorney involvement? I told you I don't care if it was cheating and I don't care what --

A. You were --

Q. Can I finish the question, please?

A. No.

THE COURT: Ma'am.

MR. DAVIS: Objection, relevance and compound question.

THE COURT: Let him finish the question.

BY MR. HANSON:

Q. Any time where I mentioned pursuing fraud or doing anything like that wasn't that something where it

was only if you make us put our family through this dispute, fight over this where it's been way worse than I could have imagined, but I knew it wouldn't be good, but didn't I tell you if you just cooperate with me and provide the records as long as I what I paid you is fair I didn't really care about the money, it was just about --

A. I have --

THE COURT: Stop.

BY MR. HANSON:

Q. It was that I needed answers, not -- I never wanted to make this ugly or pursue fraud or anything like that. The only time I ever mentioned that was if you made our family go through all of this.

MR. DAVIS: Object to relevance and compound question.

THE COURT: Sustained.

MR. HANSON: So she doesn't have to answer the question?

THE COURT: No. Anything else?

MR. HANSON: Your Honor, isn't that an important question?

THE COURT: No, sir. You're trying to use this motion to harass her and ask her additional questions. She has already stated she did not know what she was doing. She went into the forms and she

cut and pasted and she was really trying to get your medical records. I find that to be sufficient and I'm denying the motion without prejudice.

MR. HANSON: I'm sorry, Your Honor, you're not going to make them swear to -- to do what the rule requires them to do?

THE COURT: Mr. Hanson, I'm going to deny the motion without prejudice to allow you to file an amended motion with a list of all documents under the rule that they have not complied with. Mr. Davis, as an officer of the court, have you complied fully on behalf of your client with the rule of mandatory disclosure?

MR. DAVIS: I didn't do an audit today. So I want to be clear on that. My paralegal did the mandatory disclosures, which at the end of the day I recognize I'm responsible for, but I cannot as an officer the court say 100 percent, yes, there is no documents missing.

THE COURT: I'm going to charge you with doing an audit and if you have missed anything in the mandatory disclosure you have 10 days to provide them to Mr. Hanson.

MR. HANSON: Your Honor, I have to make more of a record on this. They stipulated to do something by

June 28th the only issue -- the only thing that I wanted -- they didn't do anything. Made me wait until October just before the hearing and started trickling documents out to say, okay, I'll cancel the hearing. You entered the order on October 28th of 2024 making everyone to do something about it. To make her answer these questions. Make her at least her swear to what the rule requires her to swear to. What's the basis for not making her swear to what the rule requires? How does the Court justify that?

THE COURT: What do you want her to swear to?

MR. HANSON: That she has no other financial interests during the periods required in the rule. She's only -- her document is worded very strategically where it says I didn't have anything for the past year. So she's saying that from October 2023 she didn't -- October 2023 forward she didn't have any other financial interests. The rule requires a lot more disclosure than that. I want her to swear that she didn't have any other financial interests at any period covered by the rule. And I think it just blows my mind that the Court doesn't see that.

THE COURT: You will file an amended compliance with mandatory disclosure within 10 days stating you

complied fully with the rule. Does that work for you?

MR. DAVIS: Yes, ma'am. I believe we have required by the rule.

THE COURT: Right. Can you do an audit like you said?

MR. DAVIS: Yes, ma'am.

THE COURT: Make sure and then file an amended certificate of mandatory disclosure stating that you were in full compliance when you filed the other one and make sure she swears to it and if not state which document that you did not comply with or you somehow missed and send them to him. Is 10 days sufficient for you? Actually, I'll give you the same date, the 24th.

MR. DAVIS: I need additional time.

THE COURT: How many days do you need?

MR. DAVIS: Two weeks, please.

THE COURT: Okay. So it will be the 26th. Would you like to also have the February 26th? I gave you 24th.

MR. HANSON: Sure.

THE COURT: That was 12 days. Mr. Davis has asked for 14 days. Would you like me to change your date to the 26th?

MR. HANSON: Sure.

THE COURT: So now on the first motion you have until February 26th. And Mr. Davis is going to do an inventory of the mandatory disclosures and he's going to do an amended certificate of compliance which will say we are strictly in compliance with the rule or he's going to say that he did find that something was missing and that he's provided it to you and he's going to identify it.

MR. HANSON: But he's going to swear that what --

THE COURT: He's not, she's going to swear.

MR. HANSON: She's going to swear that what she has provided complies with the fact that she is swearing under oath that she has no other financial interests during the periods required in the rule.

THE COURT: Only what is required in the rule.

MR. HANSON: But she has to swear to that?

THE COURT: Yes.

MR. HANSON: Okay.

MR. DAVIS: I just want to put on the record, if I may.

THE COURT: Go ahead.

MR. DAVIS: Number one, Mr. Hanson to the best of my knowledge hasn't identified a single document

that he believes is missing.

THE COURT: I just denied his motion.

MR. DAVIS: Okay.

THE COURT: In part with leave to amend if he wants to file an amended motion that gives you a specific list of what he thinks you're missing under the rule.

MR. DAVIS: Yes, ma'am.

THE COURT: So he doesn't have to file that motion. He can choose to, but he should probably wait until he gets your information, and if he gets your information and he believes something is missing he can file a motion with a specific list of what is specifically missing under the mandatory disclosure rule.

MR. DAVIS: Yes, ma'am. I understand that. I just to the extent that she has to incur fees to do something previously done when he hasn't identified anything. I will comply with the Court. I'm not arguing with the Court. I just want to place that on the record.

THE COURT: Did she swear -- did she sign that under oath is his issue and I think -- I know you have to do that. You're saying that she didn't swear?

MR. HANSON: She -- there is a pleading, but the pleading is strategically worded and doesn't comply with the rule. It just says she doesn't have any other financial interests in the last year from when she signed it. Which they put it off from the stipulated date of June until October and that's not compliant with the rule. So she's swearing to something, but it doesn't comply with the rule.

MR. DAVIS: She did swear in the original certificate of compliance which is dated October 22nd.

THE COURT: October 22nd of --

MR. DAVIS: -- 2024.

THE COURT: Thank you.

MR. DAVIS: Yes, ma'am. I believe that's --

THE COURT: I see it. Hold on.

MR. DAVIS: It should be 44.

THE COURT: I got it.

MR. HANSON: It's at Document No. 44?

THE COURT: Yes. So, Mr. Davis, pause for a second. So look at Document 44, Mr. Hanson, and tell me what you -- what issue you have with that?

MR. HANSON: I'm sorry. I got kicked out of Hover here. I just have to ask, Your Honor, does it concern you at all that Mr. Davis has such a problem

with the idea that you're asking him to swear to something that just complies with the rule?

THE COURT: Absolutely not because he doesn't want to commit perjury. He has not personally made sure that his paralegal did not make a mistake and accidently didn't scan in one bank account. So he wants to make sure before he, as an officer of the Court, he's taken responsible for his paralegal. But if I'm going to ask him as an officer of the Court, which is subject to going to the Florida Bar, if he's absolutely sure, he has the right to make sure that his staff did it correctly. And I respect that he's taking that extra precaution.

MR. DAVIS: If I may, one can really never know for sure because I only have the documents in any given case provided by my clients.

THE COURT: Okay. I don't see a problem with this disclosure.

MR. HANSON: I'll show it to you, Your Honor. It's very clear. In my motion I address it. So the -- I'm sorry. I got kicked off the internet.

THE COURT: I want you to know you're at 23 minutes.

MR. HANSON: Just for my time?

THE COURT: Yeah, you're done.

MR. HANSON: When they've responded --
THE COURT: They've only talked five minutes.
MR. HANSON: Your Honor, can you give me a copy of it?
THE COURT: I don't have a copy.
MR. DAVIS: Which one?
THE COURT: The certificate of mandatory disclosure.
MR. DAVIS: 10/22?
THE COURT: Yes.
MR. DAVIS: I do.
THE COURT: He's got a copy. Just to let you know where I'm going now, Mr. Hanson, unless you show me some error in that I'm going to flip it and I'm going to have you responsible for telling Mr. Davis what is missing and then Mr. Davis will respond.
MR. HANSON: Well, Your Honor, so the -- each of the --
THE COURT: And I do have it on my screen, so I'm able to see it.
MR. HANSON: Okay. So if you're looking at the motion, my problem is where does she swear to the requirements that she has no other assets in any other account besides what is disclosed for the period described in the rule? Where does she swear

to that?

THE COURT: Mr. Davis, do you understand that question?

MR. DAVIS: I do. I've been doing this for almost 27 years and I don't know that she has the -- for example, I'm looking at one. No. 8, 12 months of banking account statements. She provided Chase, Fifth Third, Fifth Third, two of them are by minor children. I don't think she has to say and none other exists.

THE COURT: So the question is does the rule state in addition to what you have to provided do you have to say I also swear there is no other documents that exist? And that's what I need to know. Do you have a copy of the rule?

MR. DAVIS: I do.

THE COURT: I see what he's saying, he wants to make sure there is a catchall, but I don't believe -- I would be shocked that the rules says that because people supplement throughout the case because things do come up. For instance, the trial I'm in right now, she just sold some jewelry in the last couple of months. So she had to supplement the mandatory disclosures because things come up while you are trying the case.

MR. DAVIS: By identifying with particularly the documents that are being delivered. Certifying the date of service. Swear and affirm under oath disclosure is complete, accurate and in compliance with the rule and unless she indicates otherwise.

THE COURT: And you said that in your last paragraph.

MR. HANSON: Your Honor, I'm sorry. I'm sorry, Your Honor. I'm denying the motion --

THE COURT: Stop.

MR. HANSON: They don't say that they don't have any other interest accounts.

THE COURT: Stop.

MR. HANSON: This is the fraud. It's happening right in front of you and you're allowing it.

THE COURT: Stop. Stop. The rule does not require her to do that. So if you would like to get that information from her you are more than willing -- you can take her deposition and ask her. The rule does not require it. They have complied with the rule. I'm denying your motion without prejudice. You may file an amended motion giving Mr. Davis a list of the documents that you are missing compliant to the rule and he will have 20 days to respond to them. All right. The next motion

is --

MR. HANSON: It says she must swear that you're complying with the rule which means that you completed all your --

THE COURT: She did swear.

MR. HANSON: Where does it say that?

THE COURT: Verification pursuant to Section 92.525 Florida Statutes. Under penalties of perjury I declare that I have read the foregoing certificate of compliance with mandatory disclosures and the facts alleged are true and correct to the best of my knowledge and that's what is required by the rule.

MR. HANSON: It doesn't say that she complied. It just says it's true. It says that she said read the rule and the facts in here are true.

THE COURT: This is the normal form that they use. I'm moving on to the next motion.

MR. HANSON: Well, Your Honor, then you're letting her get away with fraud. And it's -- that's been happening for a long time --

THE COURT: Stop.

MR. HANSON: -- and it's unfortunate.

THE COURT: The first paragraph says she submits the certificate of compliance with mandatory disclosures as required by Florida Family Rule of Law

of Procedure 12.285 as described below. In support of the certificate Wife states the following. She states it all and she signs it.

MR. HANSON: Your Honor --

THE COURT: Next motion. Mr. Hanson, I ruled.

MR. HANSON: -- my question is what's the purpose of making her do that?

THE COURT: I've ruled. Take her deposition and ask her that, if you want to. It's not required by the rule. I can't make up the rules, Mr. Hanson. The Legislature makes the rules. I follow them. So if you have other questions and you want to make up rules take her deposition and ask them.

The next motion is Husband's Respondent Motion for Clarification on Court's 12/16/24 Email on Order/ Objection to Chase Subpoenas dated 12/30/24 by Mr. Hanson. Mr. Hanson, what would you like me to do with this motion?

MR. DAVIS: Your Honor, before move on, can I ask one question clarifying as to whether I have an obligation or not from the Court's last ruling?

THE COURT: Yes.

MR. DAVIS: You initially said she has to do a new certificate of service. Is that no longer required?

THE COURT: Correct. All right. What are you asking for --

MR. HANSON: Your Honor, do I have any option to get another judge involved?

THE COURT: No, you do not. I've already ruled on your motion to disqualify me.

MR. HANSON: On this other motion I'd like you to look at Document 97, please.

THE COURT: I have them printed. I printed all your motions.

MR. HANSON: I'd like to go through Paragraph 35.

THE COURT: Okay.

MR. HANSON: It says the parties stipulated to exchange some discovery no later that June 28th, but Mr. Davis --

THE COURT: Hold on. Mine is not matching yours.

MR. HANSON: Docket 97 is a memo.

THE COURT: Oh, I apologize. Let me pull it up. All right. I'm sorry, 35?

MR. HANSON: 35A, yes. I'd like to go through the list and get answers from Mr. Davis about why we all these actions that specifically delay. So what was the reason --

THE COURT: You can't ask Mr. Davis questions.

MR. HANSON: Okay. Well, I would like the Court to consider what's the reason for stipulating to do something by June 28th and doing nothing for four months?

MR. DAVIS: Is he asking me a question?

THE COURT: No.

MR. HANSON: I'm asking --

THE COURT: Hold on. I need to see if -- is this the motion for -- your motion for clarification?

MR. HANSON: It's a memo in support of it, Your Honor, Docket 97.

THE COURT: Let me see what you're asking for in your motion to make sure because I thought you were -- this was the whole --

MR. HANSON: Your Honor, I'm trying to make an argument.

THE COURT: You can't. You can only argue your motion. So I'm going to see what relief you requested from me to make sure you can ask these questions. So you want me to overrule the objection and allow Chase Bank subpoena issued.

MR. HANSON: Yes.

THE COURT: Okay. So let's do that. So let's go. 77A why do you want me to change my ruling and

allow the Chase Bank subpoena to go out?

MR. HANSON: Number one, Your Honor, she -- we should be in equal positions to evaluate the postmarital agreement. It's supposed to be a fair process. She has three years of my finances to look at. I have one of hers.

THE COURT: Okay. Mr. Hanson --

MR. HANSON: How is that fair, Your Honor?

THE COURT: I'm going to deny that request because I've already told you in court and in writing right now your objection to the post-judgment agreement is only ripe for trial. I have told you numerous times if you want me to address the validity of that you have got to file a motion and once I review that motion if I agree with you, you would be entitled to those financial documents. I'm not saying that again. I've put it in writing and I've told you. Right now I cannot challenge the validity of the prejudgment or the post-judgment because there is no motion in front of me.

MR. HANSON: But Your Honor --

THE COURT: Going to B.

MR. HANSON: Your Honor, it's a mistake in view of the law. May I explain?

THE COURT: Sure.

MR. HANSON: So disclosure matters, right, disclosures occur in the State of Florida, right?

THE COURT: You can't ask me questions.

MR. HANSON: I disclosed everything to Mrs. Hanson before we signed the PMA and she didn't disclose anything to me.

THE COURT: File a motion.

MR. HANSON: But, Your Honor --

THE COURT: File a motion. I'm not saying it again.

MR. HANSON: So, Your Honor, what I'm telling you is, is that I shouldn't have to be robbed of the protections of the PMA --

THE COURT: File a motion.

MR. HANSON: But it doesn't need a motion.

THE COURT: Yes, it does.

MR. HANSON: Once there is not disclosure --

THE COURT: Mr. Hanson.

MR. HANSON: Casto v. Casto -- may I tell you the case law? Your Honor, I apologize. I'm not trying to be disrespectful. My kids are involved and I --

THE COURT: This has nothing to do with your kids.

MR. HANSON: It has everything to do with my

kids. It has everything to do with my kids.

THE COURT: Go ahead. Show me the case.

MR. HANSON: Para Del Ray v. Para Del Ray (phonetic) and it's cited --

THE COURT: I want you to show me case law that says if I have not filed a motion to contest the validity of an agreement I'm still entitled to discovery. That's all I need to see.

MR. HANSON: Your Honor, there is the petition where I'm saying that.

THE COURT: You can do that at the final hearing, but you can't do it -- stop. You can do it at the final hearing, but you haven't asked me to look at it before the final hearing. It's so simple.

MR. HANSON: Your Honor, I need to also put on the record, I'm confused because I thought that your assistant took this motion off of the calendar.

THE COURT: No. She showed me on four different occasions that she told you, Mr. Hanson, these are the four motions that are being heard. These are the four motions that are being heard on April 13th. She also told me that you kept saying that there was another motion that was set for today, which clearly was not. I went back and looked at my notes and I looked at my notes in JAWS. These are the four

motions that we agreed to when we had a Zoom hearing. Next is B. Husband respectfully requests that the Court overrule the objection at least in part and allow the subpoena to go out for at least three years of records leading up to the entry of the PMA. Again, that's denied. There is no motion in front of me.

MR. HANSON: Your Honor, I'd like to make an oral motion for -- to void the PMA?

THE COURT: You need to list why, so Mr. Davis can come in and tell me why it is valid.

MR. HANSON: Okay.

THE COURT: I can't just make him do that right now.

MR. HANSON: Your Honor, may I finish explaining the case law?

THE COURT: No. I want you to show me a case --

MR. HANSON: Para Del Ray --

THE COURT: Does it say -- stop. We have to take turns. I want you to show me a case that says if I am challenging the validity of a PMA and I don't have a motion before the Court, can I ask the Court to produce discovery?

MR. HANSON: Well, Fullerton (phonetic) is one of them -- actually, Fullerton is perfect. I filed

it earlier.

THE COURT: Tell me what it says, Mr. Hanson.

MR. HANSON: Well, Fullerton was a case in the PMA there was a term where it said neither party is entitled to discovery. We don't have that term. And in Fullerton the trial court even though there was a term in the PMA that said neither party is entitled to discovery the trial court still ordered discovery to check into the reasonableness of the PMA which is what I'm asking the Court to do.

THE COURT: I agree. File a motion.

MR. HANSON: I don't think there had been a motion filed in it yet.

THE COURT: They filed a motion challenging the PMA that's why it's before the Court. There is no way --

MR. HANSON: It was a discovery issue in Fullerton.

THE COURT: Give me the case.

MR. HANSON: Okay. I filed correspondence on it earlier both Para Del Ray and Fullerton support this and the idea is this, Your Honor, if there is not disclosure then to determine whether it is reasonable or unreasonable discovery is needed.

THE COURT: But you haven't even asked me to

look at the PMA and see if it's legal or challenge it. You have to challenge -- right now you have a valid PMA and until you ask me to look at it because you're challenging it I can't address the discovery issue.

MR. HANSON: By what rule?

THE COURT: Show me by what rule I can.

MR. HANSON: I mean, there is not --

THE COURT: This case is over.

MR. HANSON: There is not a rule that you can do everything that you can do. There is rules against things.

THE COURT: Once you sign a PMA you're settling your case. It's over. All I need to do is enter a final judgment. Stop.

MR. HANSON: There was no attorney involvement.

THE COURT: Then file a motion. I'm not saying it again.

MR. HANSON: All right.

THE COURT: All right. No. C. Mr. Hanson, once you enter into an agreement with your wife the case is over. I enter a final judgment. Unless you ask me to do something different.

MR. HANSON: I've been begging you, Your Honor.

THE COURT: Then file a motion.

MR. HANSON: Your Honor, I don't want -- I don't want her to go to jail for fraud. I'm not trying to go through all of those things.

THE COURT: Because you file a motion doesn't mean she's going to go to jail for fraud.

MR. HANSON: Things are bad enough with our family. Do I have to go through and review text messages and emails for years to demonstrate her fraud?

THE COURT: All you have to do is file a motion I'm challenging the PMA based on one, two, three, four, five. Set it for a hearing. I'll decide if there is some issues with it and then you can pursue finding out what should happen. But I can't hear a motion on the PMA when you haven't filed one. I'm done. I'm not saying that again.

C, alternatively should the Court sustain Wife's objection to the subpoena, Husband requests clarification regarding how the Court handled Mr. Davis' late filing of his post-hearing motion and Mr. -- Mrs. Hodz's objection to same.

MR. HANSON: Right. So he's broken every discovery rule and every ethical rule that I can imagine. Files his memo late and you just review it and do what he wants, but don't comment --

THE COURT: I don't recall if I reviewed it.

MR. HANSON: You told us that you did. You told us you did during a hearing that you decided whether you could review it or not --

THE COURT: Did I?

MR. DAVIS: I don't recall.

MR. HANSON: -- and you entered an order doing exactly what he asked even though it was late and, I mean, I don't know -- has there been any consequence for any of these discovery violations?

THE COURT: I don't recall reviewing it. I can review my notes, but if I didn't review it, I still entered an order based on what my notes said. What proof do you have that I used Mr. Davis' late filing to support of drafting that order? What proof do you have?

MR. HANSON: That you asked both parties to file motions --

THE COURT: That's not my question. Mr. Hanson, my question is how do you know if I reviewed that? You said I told you I did.

MR. HANSON: Well, what else would have caused you to rule in their favor when you needed both sides to issue a memo to review and to decide how to review it? Did my client -- did my attorney's motion make

you rule in their favor?

THE COURT: No. I look at my extensive notes that I took from the hearing. I want to them to add there position on it. And then I make my ruling based on my notes and if I need additional information from the memorandums I read them. All right. Next is --

MR. HANSON: Your Honor, if I may, I know I only have a little bit of time. I would like to get some information about whether these things are okay with the Court or not.

THE COURT: What is okay?

MR. HANSON: So stipulating to do something, does that mean anything in this Court?

THE COURT: File a motion.

MR. HANSON: I'm just asking does it mean anything?

THE COURT: Next. I'm moving to D. Alternatively should the Court sustain Wife's objection to these subpoenas. Husband requests clarification on the order regarding its limitation to Chase subpoenas and the timeline from when the Court may address them. I'm not saying it again, there is no motion in front of me on the PMA. They're denied.

MR. HANSON: Your Honor, I have additional arguments that I want to make in favor of getting the subpoena out.

THE COURT: You don't have a motion in front of me to challenge the PMA. I'm not addressing it. E.

MR. HANSON: But, your Honor --

THE COURT: Stop. Alternatively should the Court sustain Wife's objection to these subpoenas Husband requests clarification on the Court's ruling on Wife's litigation tactics discussed herein and on Husband's argument under Florida Rule 12.380 supporting a waiver of the objection and the acceptable. I am not waiving discovery. I'm not saying that it's not proper. I'm just saying there is no motion in front of me. And until there is a motion in front of me that talks about the validity of the PMA I'm not permitted to do anything else because that's a signed valid contract that I should be entering a final judgment on.

MR. HANSON: Even though there is no disclosures?

THE COURT: I don't know because there is not a motion in front of me.

MR. HANSON: There is many motions in front of you.

THE COURT: I haven't read the PMA because nobody has challenged it.

MR. DAVIS: Your Honor, may I add one thing?

THE COURT: Yes.

MR. DAVIS: For purposes of the record the Court already denied his motion for rehearing on this.

THE COURT: I know.

MR. HANSON: That's what I was confused about why it's being heard.

MR. DAVIS: So timeline wise the motion for -- the motion for clarification was filed before the Court entered the order. So the Court entering the order really makes the motion for clarification moot.

THE COURT: Is that the order I entered yesterday?

MR. DAVIS: Yes, ma'am.

THE COURT: Okay.

MR. HANSON: That's why I was confused. I didn't look at this motion today because I thought you cancelled it.

THE COURT: Perfect. So this is denied as moot because I entered the motion for rehearing yesterday.

MR. HANSON: Your Honor, I would just like to say that if you would look at things in my favor on one issue the case would be over. We would get the

records and move on. But instead my kids are getting dragged through hell. Being lies told about them. People are telling lies about me as -- insinuating lies about me as a father. No one can name anything negative about what I have done as a father. No one can name one problematic thing with my kids. They want to send a guardian ad litem to them rather than just asking the teachers how they're doing.

So what this Court is doing in prolonging this and, you know, you say that there is nothing that allows you to allow me to get a subpoena. There are discovery violations that allow you to overrule their objections and that's one of the arguments I wanted to make, but I thought we weren't hearing this today. But I want to go through at least 15 discovery violations that they've made.

THE COURT: I've already ruled.

MR. HANSON: And the rule that says that the Court may overrule an objection to discovery based upon discovery violations. If there is ever a time in history to use that rule it's this time when the only issue is the records that are at issue with the subpoena and they've committed 15 discovery violations specifically to delay and conceal that.

THE COURT: Okay. Where is that in your motion?

MR. HANSON: It's in the motion. Your Honor, what is the motion that you're looking at?

THE COURT: I already denied that as moot because I entered the motion for rehearing yesterday.

MR. HANSON: You just asked me what the argument was and now you don't want to know?

THE COURT: I can't. Mr. Davis just brought to my attention that when I ruled on the motion for rehearing yesterday this deemed this moot and he's correct. So next.

MR. HANSON: So you don't care about the discovery violation? That's all okay with this Court?

THE COURT: I didn't say that. I don't see you listing 15 --

MR. HANSON: It's in the motion. I guarantee it. I'm flustered because I don't know what number it is.

THE COURT: This is not about 15 discovery violations. This is about you asking me to clarify why I would not allow the Chase subpoenas to go out. And I ruled on that yesterday with my motion for rehearing. And, again, the reason that I do not allow the Chase subpoenas to go over is there no motion in front of me contesting the validity of the

PMA.

MR. HANSON: And why is it that the discovery violations don't justify overruling their objection?

THE COURT: File a motion.

MR. HANSON: It's in the motion that's what I'm telling you. It's in the motion.

THE COURT: Mr. Davis?

MR. HANSON: I guarantee you it's in the motion, Your Honor.

THE COURT: Okay. But this motion is moot based on the fact that I entered the order on the rehearing yesterday.

MR. HANSON: So you denied it based upon -- but now you're telling me that there is an argument that I didn't really address. You can't tell me why you didn't overrule their objection because of the 15 discovery violations specifically designed to conceal the records that I want.

THE COURT: You can't have the records because there is not a motion in front of me.

MR. HANSON: Your Honor, the motion asks for exactly what you're saying --

MR. DAVIS: I just want to say the irony of Mr. Hanson continuing to address the issue regarding the records being provided late, it's res judicata.

It's already been adjudicated by the Court. The Court granted his motion to compel. The Court found they were late. The Court found an entitlement to fees. He won. I don't understand why this has to be a continued issue.

MR. HANSON: Clearly they're hiding something. The issue when they wouldn't swear what's in the rule, I just that flabbergasts me, that the Court is what you did is good enough.

THE COURT: It's not required by the rule, sir. I can only enforce the law. The rule does not say that they have to make that statement. I cannot just make up law by myself. I have to follow the law. The final motion is Wife's Motion to Strike Husband's Appearing on Motion Still Pending Related to Discovery June 24th and for Award of Attorney's Fees and Costs and Suit Money. Mr. Davis?

MR. DAVIS: That's not the one set.

THE COURT: Oh, did I grab the wrong one. Maybe she printed the wrong one.

MR. DAVIS: The one that is set is our objection to second request for production and motion for protective order. It's documented as one --

THE COURT REPORTER: I'm sorry. One what?

MR. DAVIS: It's Wife's objection --

THE COURT: It's 110.

MR. DAVIS: Oh, I'm sorry.

THE COURT: No, that's his objection. I know the numbers by heart. It's 101.

MR. DAVIS: It is 101. I thought I had it wrong on my notice of hearing.

THE COURT: Let me correct it. It's Wife's Objection to Husband's Second Request for Production of Documents and Motion for Protective Order. Mr. Davis?

MR. DAVIS: Has the Court had an opportunity to review it?

THE COURT: No. But go ahead.

MR. DAVIS: I really think it speaks for itself and I was just trying to save time. Paragraph one, Mr. Hanson asks for all documents that support Wife made any disclosure of her financial interests that may support enforceability of the postnuptial agreement and I objected to it as being vague.

THE COURT: Response?

MR. HANSON: I don't think there is anything that she disclosed. The only thing that she disclosed a couple of months before the postmarital agreement was signed she didn't -- she took the lowest withholdings from her paychecks for three or

four years in a row. She did it again in 2022 and her bill was about $18,000. She said she didn't have enough money to pay the $18,000 and --

THE COURT: Mr. Hanson, they're objecting based on the fact that it's vague. Is it vague or not?

MR. HANSON: No, it's not vague. If they're saying that that they disclosed anything, if they didn't disclose anything, which I think they didn't, then they just say none. I'm asking anything that you disclosed about finances.

THE COURT: Any and all documents that support that Wife made any disclosure of financials. That's all about the PMA again.

MR. HANSON: Right.

MR. DAVIS: It's also an enforcement proceeding. It's not post-judgment. It's prejudgment. There is nothing to enforce. It's a valid contract unless or until Mr. Hanson files a motion for it to be set aside and if the Court grants it.

THE COURT: Okay. All right. Number two, Mr. Davis?

MR. DAVIS: Mr. Hanson is seeking from Mrs. Hanson communications between me or any representative of my law firm. And (A) any representatives from Harris Hunt & Derr. (B) any

representatives of Cortes Hodz Family Law Mediation, including text messages, et cetera. It's not relevant. It's not reasonably calculated to lead to admissible evidence. It's a fishing expedition and only sought for purposes of harassing, annoying and frustrating Mrs. Hanson.

THE COURT: Mr. Hanson, response?

MR. HANSON: Your Honor, there is one issue in the case, everything I do to ask for to try to get it resolved Mr. Davis delays it. He scares my attorneys off. The Court denies it. So I'm just trying to get information. I know how dirty his behavior has been and I'm documenting it. It's going to the Florida Bar. It's going to be published. It's going to be -- I have -- all I'm doing is telling the truth.

So I'm going to say it as loudly and as many places as I can and it's just another example of me trying to get information and anything that relates to what they're hiding they find a way to delay it. Or they find a way for you to say, no, I can't do that. So it's just another -- I wouldn't ask for it if I didn't think it was admissible or would lead to admissible evidence.

THE COURT: Number three, Mr. Davis.

MR. DAVIS: All communications between

Petitioner and Scott Davis and any representative from his law firm. And just for the record there are two law firms over the course of this representation. My prior law firm DML Attorneys, PA and my current law firm. Enclosing any records or documents referencing a timeline or strategy for producing documents in the manner to cause delay or accomplish concealment and/or offering any explanation that Mrs. Hanson about the timeline for production of records and/or strategy to delay production of records or accomplish concealment.

Number one, the request is vague. Number two, it's not relevant to the subject matter of the pending action because at least in part the Court granted the motion to compel. This issue should be deemed to be over. This is a fishing expedition. It's only sought for purposes of harassing, annoying or frustrating Mrs. Hanson. It's not reasonably calculated to lead to admissible evidence. Communications between Ms. Hanson and me or anyone with my firm, and right now I'm on my own except a contract paralegal, fall within attorney/client privilege and/or Work Product Doctrine. So -- and I just noted because Mr. Hanson made this note in his request for privileged objections send a request of

production the party claiming the privilege is required to file a privilege log, but not until after the Court has already ruled on other legal objections.

THE COURT: Mr. Hanson, response?

MR. HANSON: The same thing, Your Honor. I'm trying to figure out what they're doing with these records, how they -- what records Mrs. Hanson had and what records Mr. Davis had at which times because someone strategically trickled documents. Someone gradually put out the records in a very specific way to kind of make it look suspicious and then make it a couple of more months and then, you know, my attorney would now say we have to go through sending a good faith letter and it's been since October 28th that I had the order and then just today finally the enforcement and contempt is heard and they're not to comply with the rule. So the timing of it, Your Honor, it's -- I have one goal. To be able to move on and co-parent with Mrs. Hanson and that requires getting some of these answers. So everything that I'm asking for is relevant and critical to our family's well-being.

The sooner the Court would consider that rather than just say I'm not going to order it because there

is nothing that says I can I would appreciate it, but, you know, all I can do is keep telling the truth but --

THE COURT: But, Mr. Hanson, it would be really scary if I all of a sudden started making up rules and laws and enforcing them. I mean, that's why we have the Legislature they give me these rule books and give me statutes and --

MR. HANSON: Your Honor --

THE COURT: Stop. They give me the case law. I have to follow them. And you talk about due process, you need to know what Mr. Davis is going to come in and ask me and Mr. Davis needs to know what you are going to come in and ask me so that they can prepare. So I've tried to work with you as much as I can, but I have to follow the law. That's my only job.

MR. HANSON: Your Honor, I had entire motions with the basis of the motion was Mr. Davis' conduct and you didn't even make him come.

THE COURT: The motion --

MR. HANSON: So you're telling me we can only talk about what's in the motion.

THE COURT: Correct.

MR. HANSON: And I pleaded with the Court to have Mr. Davis come so we can get some answers and

see if I can even get a third attorney. Or if it's going to be the same thing where, you know, my first two attorneys had the conversation with Mr. Davis and it went from easy to get the records to it will be impossible. And I've asked the Court time and time again to investigate what happened with those conversations so that we have answers --

THE COURT: I can't do that. I'm not permitted --

MR. HANSON: You're not permitted --

THE COURT: -- to investigate what Mr. Davis talked about to any lawyer in Hillsborough County.

MR. HANSON: In a case that's before you where I'm alleging misconduct --

THE COURT: What misconduct are you alleging?

MR. HANSON: I'm alleging that he's intentionally concealing documents. He's intentionally doing things for the purpose of delay, burden and harassment. I'm --

THE COURT: What evidence do you have on that?

MR. HANSON: I have the strategic trickle of documents. I have the pattern of doing nothing for four months in response to the one thing that I needed.

THE COURT: And I already gave you fees on that.

MR. HANSON: I have strategically drafted certificate of noncompliance. I have the fact that I know that they tried to leverage a holiday schedule for the kids.

MR. DAVIS: Absolutely not true and I will welcome him to bring in Ms. Hodz to testify because that's absolutely not true.

MR. HANSON: Ms. Hodz told me that unless I cooperated with them on the holiday schedule they weren't going to be sending over any additional records even though there is an order requiring them to.

THE COURT: And I ruled in your favor and gave you fees on that. You already won that, sir.

MR. HANSON: Your Honor, you're not making them to swear what's in the rules. So I don't know how I won.

THE COURT: The rules do not require them to swear to that.

MR. HANSON: Your Honor, of course --

THE COURT: Mr. Davis?

MR. DAVIS: Ma'am.

(Indiscernable crosstalk.)

MR. HANSON: -- you don't have to swear to it. This is what you are supposed to do, but don't swear

to it.

THE COURT: They did swear to it. The rule does not --

MR. HANSON: They didn't swear to what is in the rule at all, Your Honor.

THE COURT: Take her deposition.

MR. HANSON: It doesn't matter what her deposition says. They didn't swear to what's in the rule. They flat out didn't do it.

THE COURT: Okay. Mr. Hanson, show me in the rule where it says that you must also swear that you don't have anything other documents?

MR. HANSON: Okay. I will.

THE COURT: Mr. Davis, can you check your calendar on 2/25?

MR. DAVIS: At what time, ma'am?

THE COURT: I have either 2 o'clock or 3 o'clock.

MR. DAVIS: Either one of those are fine.

THE COURT: All right. No, I'm going to do the 3 o'clock. And that's going to be on the order to show cause, your motion and I'm going to finish this Document 101. And I will have read it, so it will go quick on that. Mr. Davis, do you have a copy of the rule with you?

MR. DAVIS: Yes, ma'am.
THE COURT: Ms. Brandy, may I have that?
MR. DAVIS: My client wrote on the last page.
THE COURT: No, I can't look at that then.
MR. DAVIS: It's only committee notes.
THE COURT: I got it.
MR. DAVIS: Okay.
THE COURT: I don't want to see any notes.
MR. DAVIS: How long is that hearing, ma'am?
THE COURT: An hour. All right. It's in J. All parties subject to automatic mandatory disclosure must file with the Court a certificate of compliance. And it lists the form identifying with particularity the documents that have been delivered and certify the date of service of the financial affidavit and documents by that party. The party must swear or firm under oath that the disclosure is complete, accurate and in compliance with this rule. Unless the party indicates otherwise with specificity in the certificate of compliance.
MR. HANSON: I mean, that couldn't be more clear. And that's what they're trying to avoid and why isn't the Court curious about why they're trying to avoid that? Why is that big deal?
THE COURT: I don't believe they're trying to do

that. I think it's a form that Mr. Davis used that he filled out. So would you like them to amend it and use that exact language when she signs it?

MR. HANSON: Of course, I would like for them to swear to what is required in the rule. I don't think that's a crazy thing to ask for.

THE COURT: You can have that. Will you just put in the last paragraph that language and have her sign it?

MR. DAVIS: Yes, ma'am.

THE COURT: Okay. Done.

MR. HANSON: I don't know what that language is, but I'll look at it, Your Honor.

THE COURT: No, it's what the rule says. You just paraphrased it, Mr. Davis.

MR. DAVIS: Yes, ma'am.

MR. HANSON: They're clearly trying to avoid it. They have been in violation of an order since October 28th because of this, so I would like fees and costs on that, too, Your Honor. It would have taken two minutes to fix that. I've asked --

MR. DAVIS: The Court already denied the motion and he's asking for fee.

THE COURT: I'm asking you if you will do that.

MR. DAVIS: Sure.

THE COURT: That motion is moot because I already did the motion for rehearing. But I'm asking Mr. Davis even though there is not a motion in front of me would he please do that to make you happy and satisfy you. He's stipulating and agreeing to do that. So that will be done. So maybe you just need to update your form and I know we get accustomed to forms and that might have been updated in 2024 and you didn't notice it.

MR. HANSON: Will there be an order on that, Your Honor?

THE COURT: Sure.

MR. HANSON: Can I draft it and send it to you?

THE COURT: Well, I don't know what your -- yeah.

MR. HANSON: I'm going to draft something that says they comply with the rule and make it specific where they actually have to comply with the rule.

THE COURT: You can -- you did an ore tenus motion to which they stipulated to. I did not rule on it. They're going to amend their certificate of mandatory disclosure to use the specific language in the rule and refile it. If you want to send me an order on your ore tenus motion that they stipulated that they will use the exact language in the rule and

will refile it. I'm happy to do that. Send it to me in Word, please. And then as far as your other motion I'm going to stamp it as moot due to the fact of rehearing. And then Mr. Davis you will prepare the order on the first one I heard. The second motion we're going to hear when I come back. Mr. Hanson, I'm setting an order to show cause hearing for 3 p.m. on 2/24.

MR. HANSON: So, Your Honor, getting --

THE COURT: That was the wrong date. Hold on.

MR. HANSON: So the objections were overruled.

THE COURT: I can't finish them. So we're going to come back 2/25 at 2 o'clock -- I meant 2 o'clock. I meant three. I apologize 3 p.m. on 2/25.

MR. DAVIS: Yes, ma'am.

THE COURT: In person and in my courtroom.

MR. HANSON: So, Your Honor, the objections to the motion to compel are going to be heard at that time.

THE COURT: Five through however many there are. I've just heard four.

MR. HANSON: What happened to the first one?

THE COURT: I didn't rule on them yet.

MR. DAVIS: It's not the motion to compel. It's the objections.

THE COURT: Objections. We are going to come back and I'm going to hear the objections and finish the objections. I will have read it. My JA accidently printed the wrong one. I read the wrong document. I'll have read it. So we can quickly get through that and then we are going to do an order to show cause as to why I shouldn't limit both of your communications with my JA. Mr. Davis is filing a motion to limit your two communications. I'm going to hear that and that's it. And then I'll see you back.

MR. DAVIS: I thought the Court was doing an order to show cause as to both. Also our communications with each other. I really won't need to file a motion if the Court is doing that. I mean, I had one almost done, but I don't really need to if the Court is doing it.

THE COURT: I was going to do an order to show cause, so I'll do it. If you want to file a motion you can. But I'm not setting it because it's not filed.

MR. DAVIS: Yes, ma'am.

MR. HANSON: The only things that will be heard on 2/25 at 3 p.m. is the rest of the objections and the order to show cause stuff?

THE COURT: Order to show cause is going to be two parts. One is going to be with respect to the communications with my JA and then the communications between the two of you and you are going to argue that amongst the two of you to me.

MR. HANSON: And there is two requests to produce that I've issued, are we going to do the objections on both of them at that time?

THE COURT: No. We're only doing the one that I didn't finish today.

MR. HANSON: Okay.

THE COURT: And then we've got four motions I believe off the top of my head scheduled for April 13th.

MR. DAVIS: Yes, ma'am.

THE COURT: If you want anything else scheduled reach out to my JA, tell me the docket number and I'll tell you how we are going to reschedule it or schedule it. Mr. Davis?

MR. DAVIS: I just want the Court to know that I am not going to argue against the order to show cause. I'm absolutely fine with the Court doing both of the things that are contemplated even though I haven't read it, but limiting communication.

THE COURT: You want to think about it I'm

certain.

MR. HANSON: I think that our communications are very telling.

THE COURT: Okay. So when we come back we will talk about it.

MR. HANSON: And I think everything he's written has a good story.

THE COURT: Okay. So then when we come back he's already stated that he wants it limited. So when we come back you can tell me to how many per day, Mr. Davis, and then you'll tell me how you don't want them limited and then I'll make a ruling.

MR. HANSON: Just so I know, Your Honor -- I'll research it.

THE COURT: Yeah. I have to go because I'm in the middle of a trial.

(Thereupon, these proceedings were concluded at 1:48 p.m.)

C E R T I F I C A T E

STATE OF FLORIDA)

COUNTY OF HILLSBOROUGH)

I, Gina M. Herrera, Associate Court Reporter for the Circuit Court of the Thirteenth Judicial Circuit of the State of Florida, in and for Hillsborough County,

DO HEREBY CERTIFY that I was authorized to and did, through the undersigned Reporter, report stenographically the proceedings and evidence in the above-styled cause, as stated in the caption hereto, and that the foregoing pages, numbered 1 to 74, inclusive, constitute a true and correct transcription of said Reporter's shorthand report of said proceedings and evidence.

IN WITNESS WHEREOF, I have hereunto set my hand in the City of Tampa, County of Hillsborough, State of Florida, this 5th day of March, 2025.

By: Gina M. Herrera
Gina M. Herrera, RPR
Commission #HH239833

MR. DAVIS: [84]
MR. HANSON: [200]
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THE COURT: [270]
THE WIFE: [1] 26/12

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12/30/24 [1] 41/16
12:30-1:48 [1] 1/17
12:40 [1] 7/18
12th [1] 12/4
13th [4] 7/16 8/25 46/21 73/14
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16 [2] 16/24 26/19
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1:48 [2] 1/17 74/17

2

2 o'clock [3] 67/17 71/13 71/13
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2024-DR-1150 [1] 4/3
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22 [1] 37/9
22nd [2] 35/11 35/12
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24 [4] 24/7 41/15 41/16 71/8
24-DR-001150 [1] 1/6
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25 [4] 67/15 71/13 71/14 72/24
251-6222 [1] 2/5
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2nd [1] 8/3

3

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3 p.m [3] 71/8 71/14 72/24
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35A [1] 42/22
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4

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5

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6

6222 [1] 2/5

7

74 [1] 75/12
77A [1] 43/25
7th [1] 9/9

8

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84 [1] 20/18
850 [1] 7/8

9

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97 [3] 42/8 42/19 43/12

A

able [4] 11/20 17/25 37/20 63/19
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above [1] 75/11
above-styled [1] 75/11
absolutely [9] 5/10 7/10 13/10 14/5 36/3 36/11 66/5 66/7 73/22
acceptable [1] 53/13
accidently [2] 36/6 72/4
accomplish [2] 62/7 62/11
account [3] 36/6 37/24 38/7
accounts [4] 21/1 22/11 22/15 39/12
accurate [2] 39/4 68/18
accusing [1] 27/2
accustomed [1] 70/7
action [1] 62/14
actions [1] 42/24
actual [2] 24/12 24/12
actually [7] 11/20 16/14 24/10 27/13 32/14 47/25 70/18
ad [2] 18/15 55/7
add [2] 52/3 54/3
addition [1] 38/12
additional [5] 29/23 32/16 52/5 53/1 66/10
address [9] 5/6 12/13 12/24 36/20 44/13 49/4 52/23 57/15 57/24
addressing [1] 53/5
adjudicated [1] 58/1
admissible [5] 7/3 61/4 61/22 61/23 62/19
affidavit [3] 27/11 27/11 68/15
affirm [1] 39/3
after [2] 18/14 63/2
again [12] 19/11 21/5 44/17 45/10 47/6 49/18 50/16 52/23 56/23 60/1 60/13 65/6
against [7] 4/23 7/14 25/10 28/11 28/12 49/11 73/21
ago [3] 10/6 10/7 12/16
agree [2] 44/15 48/11
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agreeing [1] 70/5
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amend [3] 34/4 69/2 70/21
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amount [3] 12/21 14/13 15/4
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another [6] 18/24 24/17 42/4 46/23 61/17 61/21
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appearances [2] 1/21 4/5
appearing [3] 4/6 4/9 58/15
appreciate [1] 64/1
appropriate [1] 6/20
approximately [2] 23/8 23/12
April [2] 46/21 73/14
April 13th [2] 46/21 73/14
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argue [8] 14/4 14/19 15/17 19/23 19/25 43/18 73/4 73/21
arguing [2] 11/21 34/20
argument [10] 4/22 10/11 10/12 11/21 13/22 18/11 43/17 53/11 56/5 57/14
arguments [3] 10/21 53/2 55/13
around [2] 23/15 28/3
as [35] 9/3 12/3 12/17 19/15 25/10 26/1 26/11 27/19 29/5 29/5 30/10 30/17 36/7 36/9 40/25 41/1 41/20 54/21 55/3 55/4 55/5 56/3 58/23 59/19 61/16 61/16 61/17 64/15 64/15 71/2

3/8/2025 3:39 PM Electronically Filed: Hillsborough County/13th Judicial Circuit Page 76

A

as... [5] 71/2 71/3 72/7 72/13 75/11
aside [1] 60/19
ask [23] 12/18 20/7 20/12 26/5 26/14 29/23 35/24 36/9 39/19 41/9 41/13 41/20 43/1 43/20 45/3 47/22 49/3 49/22 61/9 61/21 64/13 64/14 69/6
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asks [2] 57/21 59/16
aspect [1] 27/15
assets [4] 21/1 22/22 25/13 37/23
assistant [7] 4/14 4/19 6/5 6/17 7/3 13/13 46/17
Associate [1] 75/4
attempt [1] 20/21
attempting [1] 27/3
attempts [1] 22/12
attend [1] 7/11
attention [1] 56/8
attorney [9] 16/14 25/23 26/1 27/1 28/13 49/16 62/22 63/13 65/1
attorney's [3] 9/4 51/25 58/16
attorney/client [1] 62/22
attorneys [6] 16/22 21/20 24/20 61/10 62/4 65/3
audit [3] 30/14 30/21 32/5
authorized [1] 75/8
automatic [1] 68/11
avoid [4] 28/13 68/22 68/24 69/17
award [5] 14/3 14/3 14/6 14/22 58/16
aware [1] 11/19
away [2] 18/11 40/19
AYERS [1] 1/13

B

back [18] 4/20 7/13 15/3 16/12 16/15 17/1 21/2 23/5 24/9 28/6 46/24 71/6 71/13 72/2 72/11 74/4 74/8 74/10
backwards [1] 22/17
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Bar [2] 36/10 61/14
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basically [1] 9/5
basis [2] 31/9 64/18
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begging [1] 49/24
behalf [1] 30/12
behavior [1] 61/12
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believe [10] 4/21 17/17 21/15 23/24 25/6 32/3 35/15 38/18 68/25 73/13
believes [2] 34/1 34/12
below [1] 41/1
besides [2] 21/9 37/24
besides those [1] 21/9
best [3] 10/22 33/24 40/11
between [8] 4/18 4/19 4/24 6/17 60/23 61/25 62/20 73/4
big [1] 68/24
bill [1] 60/2
bit [2] 28/2 52/9
blows [1] 31/22
books [1] 64/7
both [7] 48/21 51/17 51/23 72/7 72/13 73/8 73/22
bound [1] 19/16
box [2] 2/4 9/17
Brandy [1] 68/2
briefly [1] 5/6
bring [1] 66/6
bringing [1] 25/20
broken [1] 50/22
brought [3] 13/12 24/7 56/7
burden [2] 18/13 65/19

C

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calendar [2] 46/17 67/15
[redacted] **[1]** 6/13
came [2] 15/1 15/11
can [62] 5/13 6/2 6/22 6/23 7/13 9/17 9/18 10/19 10/23 12/10 13/14 14/10 14/14 14/16 15/10 17/14 18/8 18/23 20/7 20/12 20/13 20/14 20/15 23/22 28/17 32/5 34/10 34/13 36/14 37/3 39/19 41/19 43/18 43/20 46/11 46/12 47/11 47/22 49/7 49/10 49/11 50/13 50/23 51/11 55/4 55/6 58/11 61/17 64/1 64/2 64/14 64/15 64/21 64/25 65/1 67/14 69/7 70/13 70/19 72/5 72/20 74/10
can't [26] 6/1 6/2 7/8 11/22 19/25 20/2 20/9 21/25 24/25 25/6 28/5 41/10 43/1 43/18 45/3 46/12 47/13 49/4 50/14 56/7 57/15 57/19 61/20 65/8 68/4 71/12
cancel [1] 31/4
cancelled [1] 54/20
cannot [4] 6/14 30/17 44/18 58/12
caption [1] 75/11
care [5] 9/12 28/14 28/15 29/6 56/11
case [24] 1/6 4/13 7/10 7/15 16/13 16/20 36/16 38/20 38/25 45/20 46/2 46/5 47/16 47/17 47/20 48/3 48/19 49/9 49/14 49/21 54/25 61/9 64/10 65/13
cases [1] 7/8
Casto [2] 45/19 45/19
catchall [1] 38/18
cause [13] 4/17 4/20 5/13 62/7 67/22 71/7 72/7 72/13 72/19 72/25 73/1 73/22 75/11
caused [1] 51/22
cautioned [1] 4/12
certain [2] 24/6 74/1
certificate [13] 20/20 32/9 33/5 35/10 37/7 40/9 40/24 41/2 41/24 66/2 68/12 68/20 70/21
certificates [1] 20/25
certification [1] 23/20
certify [5] 20/25 21/7 21/18 68/14 75/8
Certifying [1] 39/2
cetera [1] 61/2
challenge [4] 44/18 49/1 49/2 53/5
challenged [1] 54/2
challenging [4] 47/21 48/14 49/4 50/11
chance [5] 7/21 13/8 14/4 14/18 15/17
change [2] 32/24 43/25
charge [1] 30/20
Chase [7] 38/7 41/16 43/22 44/1 52/22 56/21 56/24
cheating [1] 28/14
check [2] 48/9 67/14
children [2] 18/14 38/9
children's [1] 27/14
choice [1] 12/12
choose [1] 34/10
Chris [1] 4/9
[redacted] **[1]** 6/14
CHRISTOPHER [2] 1/7 2/8
CIRCUIT [4] 1/1 1/1 75/5 75/6
cited [1] 46/4
City [1] 75/17
Civil [1] 27/6
claiming [1] 63/1
claims [1] 24/11
clarification [7] 41/15 43/10 50/19 52/21 53/9 54/11 54/13
clarification moot [1] 54/13
clarify [1] 56/20
clarifying [1] 41/20
clear [3] 30/15 36/20 68/22
clearly [3] 46/23 58/6 69/17
client [5] 25/22 30/12 51/25 62/22 68/3
clients [1] 36/16
co [1] 63/20
co-parent [1] 63/20
come [17] 4/20 11/24 15/3 16/13 38/21 38/24 47/11 64/12 64/14 64/19 64/25 71/6 71/13 72/1 74/4 74/8 74/10
comes [1] 11/13
Commencing [1] 1/17
comment [1] 50/25
Commission [1] 75/23
commit [1] 36/4
committed [1] 55/23
committee [1] 68/5
communication [2] 27/5 73/24
communications [19] 4/18 4/19 4/22 4/24 5/11 5/20 5/25 6/6 6/12 6/13 60/23 61/25 62/20 72/8 72/9 72/14 73/3 73/3 74/2
compel [9] 7/17 9/13 12/16 14/21 15/1 58/2 62/15 71/18 71/24
complete [4] 8/4 15/12 39/4 68/17
completed [2] 20/19 40/4
completely [1] 13/6
compliance [12] 20/20 31/24 32/10 33/5 33/6 35/10 39/4 40/10 40/24 68/12 68/18 68/20
compliant [2] 35/7 39/24
complied [7] 10/9 17/16 30/10 30/11 32/1 39/20 40/13
complies [2] 33/14 36/2
comply [21] 10/8 15/25 17/8 17/11 17/15 17/22 18/5 18/8 18/22 19/1 19/3 19/18 20/21 24/1 32/12 34/19 35/2 35/8 63/18 70/17 70/18
complying [1] 40/3
compound [2] 28/20 29/14
conceal [4] 17/24 24/16 55/24 57/17
concealing [2] 18/2

3/8/2025 3:39 PM Electronically Filed: Hillsborough County/13th Judicial Circuit Page 77

C

concealing... [1] 65/17
concealment [2] 62/8 62/11
concern [1] 35/25
concerned [1] 27/14
concluded [1] 74/17
concur [1] 23/25
conduct [6] 4/12 17/24 18/1 18/25 19/22 64/18
conference [1] 4/11
confines [1] 19/17
confused [4] 15/7 46/16 54/8 54/18
confuses [1] 24/24
confusion [1] 5/18
consequence [1] 51/9
consider [2] 43/3 63/24
constantly [1] 24/16
constitute [1] 75/13
consume [1] 7/8
contemplated [1] 73/23
contempt [4] 15/1 15/25 18/22 63/17
contest [1] 46/6
contesting [1] 56/25
continued [1] 58/5
continuing [1] 57/24
contract [3] 53/18 60/17 62/22
conversation [1] 65/3
conversations [1] 65/7
cooperate [1] 29/4
cooperated [1] 66/9
copied [1] 27/7
copies [3] 9/3 9/8 16/7
copy [8] 9/1 16/4 16/6 37/3 37/5 37/12 38/15 67/24
correct [7] 11/25 40/11 42/1 56/10 59/7 64/23 75/13
correctly [1] 36/12
correspondence [3] 4/13 28/3 48/20
Cortes [1] 61/1
costs [2] 58/17 69/20
could [6] 4/4 15/8 18/3 23/7 29/3 51/4
couldn't [1] 68/21
counsel [1] 8/3
counsels [3] 4/11 4/18 4/19
COUNTY [6] 1/1 1/14 65/12 75/3 75/7 75/17
couple [5] 16/6 26/14 38/22 59/23 63/13
course [5] 5/7 13/24 62/3 66/20 69/4
court [73] 1/1 5/6 5/9 5/10 6/4 7/21 8/17 8/17 12/13 12/16 12/19 14/19 15/18 17/1 18/1 19/7 20/10 21/21 25/7 27/5 30/11 30/18 31/10 31/22 34/19 34/20 36/8 36/9 43/2 44/10 47/3 47/22 47/22 48/6 48/8 48/10 48/15 50/17 50/19 52/11 52/14 52/19 52/23 53/8 54/5 54/12 54/12 55/9 55/19 56/13 58/1 58/2 58/2 58/3 58/8 59/11 60/19 61/11 62/14 63/3 63/24 64/24 65/5 68/12 68/23 69/22 72/12 72/15 72/17 73/20 73/22 75/4 75/5
Court doesn't [1] 31/22
Court's [6] 8/6 15/25 24/21 41/15 41/21 53/9
Courthouse [1] 1/15
courtroom [1] 71/16
covered [1] 31/21
crazy [1] 69/6
criminal [1] 27/3
critical [1] 63/22
crosstalk [1] 66/23
crunch [1] 26/13
curious [1] 68/23
current [1] 62/4
cut [2] 27/22 30/1

D

date [14] 1/16 4/25 11/18 22/15 23/5 23/7 24/5 26/20 32/14 32/25 35/6 39/3 68/15 71/10
dated [3] 8/24 35/10 41/16
DAVIS [50] 2/3 4/6 5/21 5/23 6/12 18/15 19/6 19/23 20/19 23/16 24/3 25/20 27/23 30/10 32/23 33/3 35/20 35/25 37/15 37/16 38/2 39/23 42/16 42/23 43/1 47/10 56/7 57/7 58/17 59/10 60/21 61/10 61/24 62/1 63/9 64/12 64/13 64/25 65/3 65/11 66/21 67/14 67/24 69/1 69/15 70/3 71/4 72/8 73/19 74/11
Davis' [5] 18/1 19/22 50/20 51/14 64/18
davislawtampa.com [1] 2/5
day [4] 7/8 30/16 74/11 75/18
days [14] 10/6 10/7 11/16 11/20 12/4 12/8 21/21 30/22 31/25 32/13 32/17 32/23 32/24 39/25
deal [2] 7/6 68/24
dealing [1] 5/23
dealt [1] 13/22
December [5] 7/16 8/3 8/25 10/6 15/23
December 13th [2] 7/16 8/25
December 18th [2] 10/6 15/23
December 2nd [1] 8/3
decide [2] 50/12 51/24
decide how [1] 51/24
decided [1] 51/3
declare [1] 40/9
deeds [1] 24/9
deemed [2] 56/9 62/16
defend [2] 5/3 19/25
defraud [1] 27/3
Del [4] 46/3 46/3 47/18 48/21
delay [7] 17/24 42/24 55/24 61/19 62/7 62/10 65/18
delayed [1] 24/18
delaying [1] 18/2
delays [2] 18/12 61/10
delivered [2] 39/2 68/14
demonstrate [1] 50/8
denied [8] 34/2 47/6 52/25 54/6 54/21 56/3 57/13 69/22
denies [1] 61/11
deny [3] 14/24 30/7 44/9
denying [3] 30/3 39/9 39/21
deposition [5] 39/19 41/8 41/13 67/6 67/8
Derr [1] 60/25
described [3] 10/1 37/25 41/1
designed [2] 19/9 57/17
determine [1] 48/23
did [44] 5/14 5/14 6/7 8/1 9/11 9/22 13/19 15/11 17/7 17/8 17/11 19/13 23/12 24/19 25/18 25/22 26/4 26/5 27/24 28/11 29/24 30/15 32/12 33/7 34/22 34/22 35/9 36/5 36/12 40/5 51/2 51/3 51/5 51/21 51/25 51/25 58/9 58/19 60/1 67/2 70/2 70/19 70/20 75/9
didn't [48] 7/12 13/2 14/9 14/23 14/24 14/24 15/4 15/5 15/12 17/15 18/7 19/1 19/3 19/18 22/14 25/14 27/8 27/23 27/23 27/25 29/4 29/6 30/14 31/2 31/15 31/17 31/18 31/20 34/24 36/6 45/5 51/12 54/19 56/14 57/15 57/16 59/24 60/2 60/8 60/8 61/22 64/19 67/4 67/8 67/9 70/9 71/23 73/10
difference [1] 13/9
different [3] 10/22 46/18 49/23
difficult [1] 21/23
DIRECT [1] 26/17
directly [1] 22/7
dirty [1] 61/12
disclose [3] 25/14 45/6 60/8
disclosed [9] 17/19 22/22 25/13 37/24 45/4 59/22 59/23 60/7 60/10
disclosing [1] 22/22
disclosure [29] 8/2 8/4 12/17 15/12 16/18 17/8 18/5 18/23 23/22 23/24 24/1 25/20 30/13 30/22 31/19 31/25 32/9 34/14 36/18 37/8 39/4 45/1 45/17 48/23 59/17 60/12 68/11 68/17 70/22
disclosures [19] 9/1 16/1 16/12 17/12 17/23 18/7 19/2 19/3 19/19 20/12 27/10 27/16 30/16 33/4 38/24 40/10 40/25 45/2 53/21
discovery [26] 7/17 10/10 14/22 16/16 42/15 46/8 47/23 48/5 48/8 48/8 48/17 48/24 49/4 50/23 51/10 53/13 55/12 55/15 55/19 55/20 55/23 56/12 56/19 57/2 57/17 58/16
discussed [1] 53/10
dispute [2] 26/21 29/2
disqualify [1] 42/6
disrespectful [1] 45/21
DIVISION [2] 1/2 1/7
DML [1] 62/4
do [103]
docket [3] 42/19 43/12 73/17
Doctrine [1] 62/23
document [12] 12/1 16/15 18/3 24/11 31/14 32/12 33/25 35/19 35/21 42/8 67/23 72/5
documented [1] 58/23
documenting [1] 61/13
documents [34] 7/25 8/16 10/14 11/1 11/4 12/9 21/5 23/19 24/20 24/23 25/1 25/19 25/24 26/2 26/22 30/9 30/19 31/4 36/15 38/13 39/2 39/23 44/16 59/9 59/16 60/11 62/5 62/7 63/10 65/17 65/22 67/12 68/14 68/16
does [17] 18/8 19/4 31/10 32/1 35/24 37/22 37/25 38/11 39/16 39/20 40/6 45/16 47/19 52/14 52/16 58/11 67/2
doesn't [19] 7/7 9/14 10/13 10/14 11/14 17/22 19/7 22/24 29/17 31/22 34/9 35/2 35/3 35/8 36/3 40/13 45/15 50/4 67/7
doing [25] 5/5 7/7 10/22 14/17 18/16 19/8 27/25 28/1 28/25 29/25 30/20 38/4 43/4 51/7 55/8 55/9 61/15 63/7 65/18 65/22 72/12 72/15 72/17 73/9 73/22
don't [55] 5/19 5/21 5/23 5/25 7/9 8/6 9/15 11/5 11/13 11/15 13/16 17/25 21/18 22/23 26/13 27/24 28/14 28/15 36/17 37/5 38/5 38/9 38/18 39/11 39/11 47/21 48/5 48/12 50/1 50/1 50/25 51/1 51/6 51/9 51/11 53/4 53/22 56/6 56/11 56/14 56/17 57/3 58/4 59/21 66/16 66/24 66/25 67/12 68/8 68/25 69/5 69/12 70/14 72/16 74/11
done [10] 5/22 6/14 6/21 34/18 36/25 50/16 55/5 69/11 70/6 72/16
DR [2] 1/6 4/3
draft [2] 70/13 70/16
drafted [1] 66/1
drafting [1] 51/15
dragged [1] 55/2
drop [1] 9/14
due [8] 10/20 10/21 11/18 12/9 21/24 21/25 64/11 71/3
duly [1] 26/9
during [3] 31/13 33/16 51/3

E

E-file [2] 6/22 6/23
each [9] 4/23 4/24 12/1

3/8/2025 3:39 PM Electronically Filed: Hillsborough County/13th Judicial Circuit Page 78

E

each... [6] 12/2 19/6 20/9 27/19 37/17 72/14
earlier [2] 48/1 48/21
easy [1] 65/4
Edgecomb [1] 1/15
education [1] 16/25
either [6] 9/4 11/4 27/17 28/1 67/17 67/19
else [4] 29/19 51/22 53/17 73/16
email [6] 8/24 9/9 9/25 10/6 10/7 41/15
emails [6] 5/17 6/17 7/2 8/17 8/22 50/8
Enclosing [1] 62/5
end [2] 25/12 30/16
enforce [2] 58/11 60/17
enforceability [1] 59/18
enforcement [5] 15/24 18/21 24/21 60/15 63/17
enforcing [1] 64/6
enough [3] 50/6 58/9 60/3
enter [7] 13/23 14/14 15/8 15/10 49/14 49/21 49/22
entered [9] 24/22 31/5 51/7 51/13 54/12 54/14 54/22 56/4 57/11
entering [4] 5/10 14/10 53/19 54/12
entire [1] 64/17
entitled [6] 15/14 20/19 44/16 46/7 48/5 48/7
entitlement [14] 12/18 12/20 13/3 14/6 14/12 14/15 14/19 14/25 15/6 15/13 15/15 15/18 15/19 58/3
entry [1] 47/5
equal [1] 44/3
error [1] 37/14
especially [1] 13/21
ESQUIRE [1] 2/3
et [1] 61/2
ethical [2] 19/8 50/23
evaluate [1] 44/3
even [12] 15/4 15/5 22/2 48/6 48/25 51/8 53/20 64/19 65/1 66/11 70/3 73/23
ever [3] 28/11 29/12 55/20
every [3] 24/25 50/22 50/23
everyone [3] 5/1 7/11 31/6
everything [14] 5/22 6/4 16/21 16/25 19/7 22/3 23/20 45/4 45/25 46/1 49/11 61/9 63/21 74/6
evidence [6] 61/4 61/23 62/19 65/20 75/10 75/15
exact [2] 69/3 70/25
exactly [3] 5/2 51/8 57/22
EXAMINATION [1] 26/17
examined [1] 26/11
example [4] 17/14 24/17 38/6 61/17
except [1] 62/21
exchange [1] 42/15
excuses [1] 24/19
Exhibit [4] 8/15 8/19 9/23 10/2
exist [2] 21/18 38/14
exists [1] 38/10
expedition [2] 61/4 62/16
explain [3] 6/3 13/8 44/24
explained [1] 16/16
explaining [1] 47/15
explanation [2] 11/15 62/8
expound [1] 17/4
extensive [1] 52/2
extent [3] 8/9 25/15 34/17
extra [2] 12/5 36/13
extremely [1] 5/6

F

fact [5] 33/14 57/11 60/5 66/2 71/3
facts [3] 13/1 40/11 40/15
failure [2] 15/25 18/22
fair [3] 29/5 44/4 44/8
faith [3] 8/2 8/15 63/15
fall [1] 62/22
familiar [1] 24/24
family [9] 1/2 2/3 27/25 28/1 29/1 29/13 40/25 50/7 61/1
family's [1] 63/23
far [2] 4/15 71/2
father [2] 55/4 55/5
favor [5] 51/23 52/1 53/2 54/24 66/13
February [5] 1/16 12/9 12/10 32/20 33/3
February 24th [2] 12/9 12/10
February 26th [2] 32/20 33/3
federal [1] 21/25
fee [1] 69/23
feel [1] 18/10
fees [21] 12/18 12/20 12/22 13/5 13/25 14/3 14/3 14/6 14/19 14/22 14/24 14/24 15/2 15/3 15/13 34/17 58/4 58/16 65/25 66/14 69/19
few [3] 13/14 13/24 21/22
Fifth [2] 38/8 38/8
fight [1] 29/2
figure [1] 63/7
file [31] 6/4 6/22 6/23 10/18 10/21 11/5 11/22 18/25 30/8 31/24 32/8 34/5 34/9 34/13 39/22 44/14 45/7 45/9 45/14 48/11 49/17 49/25 50/4 50/10 51/17 52/15 57/4 63/2 68/12 72/15 72/19
filed [20] 5/4 7/16 8/20 13/16 14/21 15/23 16/14 19/12 19/15 25/10 27/4 32/10 46/6 47/25 48/13 48/14 48/20 50/15 54/11 72/21
files [2] 50/24 60/18
filing [6] 22/15 24/5 26/19 50/20 51/14 72/8
filled [1] 69/2
final [7] 46/11 46/13 46/14 49/15 49/22 53/19 58/14
finally [1] 63/16
finances [4] 16/17 25/15 44/5 60/10
financial [14] 17/19 21/8 23/4 23/19 26/22 27/15 31/12 31/18 31/20 33/15 35/4 44/16 59/17 68/15
financials [2] 27/9 60/12
find [8] 9/7 9/11 12/20 13/2 30/2 33/7 61/19 61/20
finding [3] 15/24 18/22 50/14
fine [2] 67/19 73/22
finish [7] 28/17 28/22 47/15 67/22 71/12 72/2 73/10
firm [7] 13/18 60/24 62/2 62/4 62/5 62/21 68/17
firms [1] 62/3
first [11] 5/4 7/16 8/24 11/13 16/13 16/14 33/2 40/23 65/2 71/5 71/22
fishing [3] 27/21 61/4 62/16
five [3] 37/2 50/12 71/20
fix [3] 5/20 6/1 69/21
flabbergasts [1] 58/8
flat [1] 67/9
flip [1] 37/14
FLORIDA [15] 1/1 1/15 1/19 2/4 21/24 27/6 36/10 40/8 40/25 45/2 53/11 61/13 75/2 75/6 75/18
flustered [1] 56/17
focused [2] 24/25 25/1
focusing [1] 22/6
follow [5] 28/4 41/11 58/13 64/11 64/16
follow-up [1] 28/4
following [1] 41/2
follows [1] 26/11
foregoing [2] 40/9 75/12
forget [1] 26/13
form [6] 18/4 27/5 40/16 68/13 69/1 70/7
forms [2] 29/25 70/8
forward [2] 22/11 31/17
forwarding [1] 6/17
found [4] 12/17 14/20 58/2 58/3
four [12] 5/1 11/14 43/4 46/18 46/20 46/21 46/25 50/12 60/1 65/23 71/21 73/12
fraud [10] 27/3 28/11 28/12 28/24 29/11 39/14 40/19 50/2 50/5 50/9
front [12] 39/15 44/20 47/6 52/24 53/4 53/15 53/16 53/23 53/24 56/25 57/20 70/3
frustrated [1] 7/6
frustrating [2] 61/6 62/18
frustration [1] 7/7
full [1] 32/10
Fullerton [6] 47/24 47/25 48/3 48/6 48/18 48/21
fully [3] 5/8 30/11 32/1

G

games [1] 22/4
gave [6] 15/2 15/14 25/9 32/21 65/25 66/13
get [28] 9/5 9/8 13/25 15/2 17/25 19/14 20/13 20/13 20/14 21/24 26/22 27/13 30/1 39/17 40/19 42/4 42/23 52/9 54/25 55/11 61/9 61/11 61/18 64/25 65/1 65/4 70/7 72/5
gets [2] 34/11 34/11
getting [12] 14/4 16/21 18/11 19/9 25/1 25/2 25/8 28/6 53/2 55/1 63/21 71/9
Gina [3] 1/18 75/4 75/22
give [11] 12/11 13/5 15/4 15/5 17/14 32/14 37/3 48/19 64/7 64/8 64/10
given [3] 27/10 27/11 36/16
gives [2] 12/5 34/5
giving [2] 15/15 39/22
go [28] 7/20 8/5 9/18 11/2 12/1 16/8 19/19 20/5 24/6 29/13 33/23 42/11 42/22 43/25 44/1 46/2 47/4 50/2 50/3 50/5 50/7 55/15 56/21 56/24 59/13 63/14 67/23 74/15
goal [1] 63/19
goes [2] 16/12 24/8
going [69] 4/15 4/16 5/1 5/2 5/12 7/2 8/23 13/3 13/5 13/5 13/25 15/2 15/17 16/19 17/1 18/13 19/19 21/2 23/5 26/24 27/18 30/5 30/7 30/20 33/3 33/4 33/7 33/9 33/10 33/12 33/13 36/9 36/10 37/13 37/14 37/15 43/19 44/9 44/22 50/5 61/13 61/14 61/14 61/16 63/25 64/12 64/14 65/2 66/10 67/20 67/21 67/22 70/16 70/21 71/3 71/6 71/12 71/18 72/1 72/2 72/6 72/9 72/18 73/1 73/2 73/4 73/7 73/18 73/21
good [7] 8/2 8/15 9/14 29/3 58/9 63/14 74/7
got [10] 11/14 15/3 18/24 35/18 35/23 36/21 37/12 44/14 68/6 73/12
gotten [1] 22/20
grab [1] 58/19
gradually [2] 24/21 63/11
grant [2] 14/24 14/24
granted [5] 12/17 13/4 13/18 58/2 62/15
grants [1] 60/19
guarantee [2] 56/16 57/8
guardian [2] 18/15 55/7

3/8/2025 3:39 PM Electronically Filed: Hillsborough County/13th Judicial Circuit Page 79

G

guess [1] 15/7

H

had [25] 4/10 7/21 9/11 10/21 10/21 16/7 16/21 17/18 20/25 22/10 26/20 27/2 27/10 27/11 38/23 47/1 48/12 59/5 59/11 63/8 63/9 63/16 64/17 65/3 72/16
hand [2] 26/6 75/16
handle [1] 20/6
handled [1] 50/19
HANSON [61] 1/4 1/7 2/8 4/2 4/3 4/7 4/8 4/9 5/15 6/7 8/1 8/25 9/1 9/22 10/9 10/13 12/18 16/2 16/5 18/1 19/21 20/7 20/12 23/2 24/10 24/14 26/8 30/7 30/23 33/24 35/21 37/13 41/5 41/10 41/17 41/17 44/7 45/5 45/18 46/19 48/2 49/20 51/19 57/24 59/16 60/4 60/18 60/22 60/23 61/6 61/7 62/9 62/18 62/20 62/24 63/5 63/8 63/20 64/4 67/10 71/7
Hanson's [2] 4/4 12/15
happen [1] 50/14
happened [2] 65/6 71/22
happening [3] 25/6 39/14 40/20
happy [5] 8/5 17/4 24/6 70/4 71/1
harass [1] 29/23
harassing [2] 61/5 62/17
harassment [2] 18/13 65/19
Harris [1] 60/25
has [41] 6/4 7/6 7/11 7/21 9/5 10/7 10/13 11/23 17/16 18/13 19/24 21/8 23/23 24/10 25/17 28/7 29/24 31/12 32/23 33/14 33/15 33/18 34/17 35/25 36/4 36/11 37/23 38/5 38/9 41/23 44/5 45/23 45/25 46/1 51/9 54/2 58/4 59/11 61/12 63/3 74/7
has the [1] 38/5
hasn't [4] 9/21 24/13 33/25 34/18
have [131]
haven't [5] 46/13 48/25 50/15 54/1 73/24
having [2] 15/9 26/9
he [42] 9/5 9/13 9/17 9/18 9/21 11/23 11/25 14/21 14/22 14/25 19/24 23/25 24/11 24/12 25/20 33/7 34/1 34/4 34/6 34/9 34/10 34/10 34/11 34/11 34/12 34/13 34/18 36/3 36/4 36/6 36/7 36/11 38/17 39/24 43/6 50/25 51/8 58/4 61/10 69/2 70/4 74/9
he's [23] 10/4 13/25 19/8 23/17 33/4 33/7 33/8 33/8 33/10 33/12 36/8 36/10 36/12 37/12 38/17 50/22 56/9 65/16 65/17 69/23 70/5 74/6 74/9
head [2] 24/8 73/13
hear [5] 4/21 50/14 71/6 72/2 72/10
heard [9] 6/8 46/20 46/21 54/9 63/17 71/5 71/18 71/21 72/23
hearing [27] 4/12 11/3 13/14 13/18 13/23 13/25 14/15 14/17 15/9 15/10 15/20 21/22 25/21 31/3 31/5 46/12 46/13 46/14 47/1 50/12 50/20 51/3 52/3 55/14 59/6 68/9 71/8
hearings [1] 5/1
heart [1] 59/4
Helene [1] 9/6
hell [1] 55/2
her [42] 6/18 7/8 16/17 16/23 18/24 20/14 22/12 23/3 25/11 25/15 25/22 26/1 26/4 26/14 26/24 29/23 29/23 31/7 31/7 31/8 31/8 31/9 31/11 31/14 31/19 39/17 39/18 39/19 39/19 40/19 41/7 41/8 41/9 41/13 50/2 50/8 59/17 59/25 60/2 67/6 67/7 69/8
here [7] 4/2 5/1 12/15 14/16 18/11 35/24 40/15
HEREBY [1] 75/8
herein [1] 53/10
hereto [1] 75/11
hereunto [1] 75/16
Herrera [3] 1/18 75/4 75/22
hers [1] 44/6
HH239833 [1] 75/23
hiding [2] 58/6 61/19
highlighted [2] 9/2
9/10
HILLSBOROUGH [6] 1/1 1/14 65/12 75/3 75/7 75/17
him [14] 8/2 9/12 9/16 10/2 13/5 25/19 25/24 28/22 32/13 36/1 36/9 47/13 64/19 66/6
his [13] 34/2 34/23 36/5 36/8 36/12 50/20 50/24 54/6 58/2 59/3 61/12 62/2 62/24
history [2] 17/9 55/21
Hodz [5] 8/3 13/17 61/1 66/6 66/8
Hodz's [1] 50/21
Hold [5] 25/18 35/16 42/17 43/9 71/10
holding [1] 7/14
holiday [2] 66/3 66/9
Honor [76]
HONORABLE [1] 1/13
hour [1] 68/10
hours [1] 10/23
house [1] 9/7
Hover [1] 35/24
how [24] 4/15 10/25 11/3 11/6 11/16 12/4 20/1 20/6 20/12 20/23 31/10 32/17 44/8 50/19 51/20 51/24 55/8 61/12 63/8 66/16 68/9 73/18 74/10 74/11
however [1] 71/20
huge [1] 25/5
Hunt [1] 60/25
hurricane [1] 9/6
Husband [6] 1/8 2/7 47/2 50/18 52/20 53/9
Husband's [5] 15/23 41/14 53/11 58/14 59/8

I

I'd [4] 42/7 42/11 42/22 47/8
I'll [17] 7/13 12/22 13/8 14/18 15/16 26/15 31/4 32/14 36/19 50/12 69/13 72/5 72/10 72/19 73/18 74/12 74/13
I'm [112]
I've [21] 6/21 9/2 10/21 10/21 11/14 18/15 24/23 25/4 38/4 41/8 42/5 44/10 44/17 44/17 49/24 55/17 64/15 65/5 69/21 71/21 73/7
idea [2] 36/1 48/22
identified [4] 8/4 24/10 33/25 34/18
identifies [1] 8/16
identify [1] 33/9
identifying [2] 39/1
68/13
ignore [1] 11/8
imagine [1] 50/24
imagined [1] 29/3
important [3] 7/10 7/15 29/20
impossible [1] 65/5
included [2] 18/13 20/4
including [1] 61/2
inclusive [1] 75/13
inconsistent [1] 25/17
incur [1] 34/17
indicates [2] 39/5 68/19
Indiscernable [1] 66/23
information [11] 13/21 18/16 24/17 27/13 34/11 34/12 39/18 52/6 52/10 61/12 61/18
initially [1] 41/23
insinuating [1] 55/3
instance [1] 38/21
instances [1] 13/14
instead [2] 6/9 55/1
intentional [1] 17/23
intentionally [2] 65/17 65/18
interest [6] 17/19 21/1 22/10 22/14 23/23 39/12
interests [7] 21/8 31/13 31/18 31/21 33/16 35/4 59/17
internet [1] 36/21
interrogatories [6] 16/24 17/9 25/10 26/20 27/7 27/12
interrogatory [1] 27/9
inventory [1] 33/4
investigate [2] 65/6 65/11
involved [3] 27/12 42/4 45/21
involved and [1] 45/21
involvement [2] 28/14 49/16
irony [1] 57/23
is [174]
isn't [2] 29/20 68/23
issue [21] 15/9 16/12 16/16 16/20 16/22 18/24 22/8 31/1 34/23 35/22 48/17 49/5 51/24 54/25 55/22 55/22 57/24 58/5 58/7 61/8 62/15
issued [2] 43/22 73/7
issues [2] 8/18 50/13
it [190]
it's [83]
item [2] 11/2 11/2
items [1] 8/19
its [1] 52/21
itself [2] 7/25 59/14

J

JA [7] 4/22 5/17 6/3 72/3 72/8 73/3 73/17
jail [2] 50/2 50/5
January [2] 9/9 10/6
January 7 [1] 10/6
January 7th [1] 9/9
JAWS [1] 46/25
jewelry [1] 38/22
job [1] 64/16
judge [2] 12/15 42/4
judgment [6] 44/11 44/19 49/15 49/22 53/19 60/16
judicata [1] 57/25
judicial [8] 1/1 4/14 4/18 6/5 6/16 7/3 13/13 75/5
June [7] 22/5 24/18 31/1 35/6 42/15 43/4 58/16
June 24th [1] 58/16
June 28th [4] 22/5 31/1 42/15 43/4
just [58] 5/9 5/18 7/15 8/7 9/25 11/5 11/8 11/16 13/12 14/23 14/25 15/3 15/11 16/22 22/25 27/15 27/24 29/4 29/6 31/3 31/22 33/21 34/2 34/17 34/20 35/3 35/24 36/2 36/24 37/12 38/22 40/14 47/13 50/24 52/16 53/14 54/23 55/8 56/5 56/7 57/23 58/8 58/12 59/15 60/9 61/11 61/17 61/21 62/2 62/24 63/16 63/25 69/7 69/15 70/6 71/21 73/20 74/13
justify [2] 31/10 57/3

K

keep [7] 7/1 18/10 18/18 19/6 19/9 27/24 64/2
keeps [1] 25/20
KELLEY [1] 1/13
kept [1] 46/22
kicked [2] 35/23 36/21
kids [9] 18/16 25/5 45/21 45/24 46/1 46/1 55/1 55/6 66/4
kind [1] 63/12
knew [1] 29/3
know [47] 5/19 5/19 5/21 7/9 7/15 10/12 11/13 13/12 13/16

3/8/2025 3:39 PM Electronically Filed: Hillsborough County/13th Judicial Circuit Page 80

K

know... [38] 17/25 19/2 19/13 21/20 22/23 22/25 25/8 27/25 28/1 29/24 34/23 36/14 36/22 37/13 38/5 38/14 51/9 51/20 52/8 53/22 54/7 55/10 56/6 56/17 59/3 61/12 63/13 64/2 64/12 64/13 65/2 66/3 66/16 69/12 70/7 70/14 73/20 74/13
knowledge [2] 33/25 40/12

L

language [6] 20/24 69/3 69/8 69/12 70/22 70/25
large [2] 9/13 18/11
last [7] 21/2 35/4 38/22 39/6 41/21 68/3 69/8
late [6] 50/20 50/24 51/8 51/14 57/25 58/3
later [1] 42/15
law [25] 1/2 2/3 13/17 19/17 20/1 21/24 25/7 27/25 28/1 40/25 44/24 45/20 46/5 47/16 58/11 58/13 58/13 60/24 61/1 62/2 62/3 62/4 62/5 64/10 64/16
laws [1] 64/6
lawyer [2] 15/13 65/12
lawyers [1] 27/12
lead [3] 61/3 61/22 62/19
leading [1] 47/5
least [5] 31/7 47/3 47/4 55/15 62/14
leave [2] 4/25 34/4
legal [5] 11/3 11/25 12/2 49/1 63/3
Legislature [2] 41/11 64/7
lens [1] 17/2
less [1] 18/17
let [9] 4/10 5/4 13/18 28/13 28/22 37/12 42/20 43/13 59/7
let's [3] 20/5 43/24 43/24
letter [3] 8/2 8/16 63/15
letting [1] 40/19
leverage [1] 66/3
lies [3] 55/2 55/3 55/4
like [26] 9/19 14/8 15/11 18/10 22/13 24/1 25/9 27/24 28/3 28/25 29/11 32/5 32/20 32/24 39/17 41/17 42/7 42/11 42/22 43/2 47/8 52/9 54/23 69/2 69/4 69/19
limit [5] 4/17 4/21 4/23 72/7 72/9
limitation [1] 52/21
limited [2] 74/9 74/12
limiting [1] 73/24
list [10] 6/8 10/10 18/6 25/1 30/9 34/6 34/13 39/23 42/23 47/10
listing [1] 56/15
lists [1] 68/13
litem [2] 18/15 55/7
litigation [1] 53/10
little [1] 52/9
locate [1] 16/2
log [1] 63/2
long [7] 10/25 11/4 11/6 20/13 29/5 40/20 68/9
longer [1] 41/24
look [21] 7/13 9/23 18/3 18/6 18/12 18/23 19/19 20/15 22/9 35/21 42/8 44/5 46/14 49/1 49/3 52/2 54/19 54/24 63/12 68/4 69/13
looked [3] 24/23 46/24 46/25
looking [3] 37/21 38/6 56/2
lot [1] 31/19
loudly [1] 61/16
love [1] 20/17
lowest [1] 59/25

M

ma'am [25] 7/19 7/24 8/12 8/14 8/21 10/4 12/23 25/25 26/3 28/19 32/3 32/7 34/8 34/16 35/15 54/16 66/22 67/16 68/1 68/9 69/10 69/16 71/15 72/22 73/15
made [9] 7/2 21/22 29/12 31/2 36/4 55/16 59/17 60/12 62/24
mail [2] 9/8 9/17
mailed [2] 9/4 9/12
main [1] 22/1
make [38] 4/4 14/8 18/8 18/18 19/4 20/20 22/13 29/1 29/11 30/5 30/24 31/7 31/7 32/8 32/11 36/5 36/7 36/11 38/18 41/10 41/12 43/14 43/16 43/20 47/8 47/13 51/25 52/4 53/2 55/14 58/12 58/13 63/12 63/12 64/19 70/4 70/17 74/12
makes [2] 41/11 54/13
making [5] 31/6 31/9 41/7 64/5 66/15
mandatory [37] 8/1 9/1 12/17 15/12 16/1 16/11 16/18 17/8 17/11 17/22 18/5 18/6 18/23 19/2 19/3 19/18 20/12 21/11 23/22 23/24 24/1 25/19 27/10 27/16 30/12 30/16 30/22 31/25 32/9 33/4 34/14 37/7 38/23 40/10 40/24 68/11 70/22
manner [1] 62/7
many [7] 11/16 27/2 32/17 53/24 61/16 71/20 74/10
March [1] 75/18
marital [2] 23/5 26/21
marriage [3] 1/4 16/19 22/12
matching [1] 42/17
matter [4] 13/1 22/24 62/13 67/7
matters [1] 45/1
Max [1] 9/19
may [18] 5/6 12/13 12/24 14/3 14/6 16/15 33/22 36/14 39/22 44/24 45/19 47/15 52/8 52/23 54/3 55/19 59/18 68/2
maybe [2] 58/19 70/6
me [114]
mean [10] 7/5 13/1 49/8 50/5 51/9 52/14 52/16 64/6 68/21 72/15
means [2] 14/23 40/3
meant [3] 17/24 71/13 71/14
Mediation [2] 2/3 61/1
medical [4] 16/25 27/13 27/21 30/2
memo [4] 42/19 43/11 50/24 51/24
memorandums [1] 52/6
mentioned [5] 9/3 15/8 28/10 28/24 29/12
messages [3] 27/2 50/8 61/2
middle [1] 74/16
might [2] 12/11 70/8
mind [2] 7/7 31/22
Mine [1] 42/17
minor [1] 38/8
minutes [4] 5/2 36/23 37/2 69/21
mirrored [2] 27/9 27/15
misconduct [2] 65/14 65/15
misplaced [1] 16/7
missed [2] 30/21 32/13
missing [12] 8/4 17/20 20/7 20/11 30/19 33/8 34/1 34/6 34/12 34/14 37/16 39/24
mistake [2] 36/5 44/23
moment [1] 16/2
money [3] 29/6 58/17 60/3
monitor [1] 27/5
months [13] 12/16 17/18 21/2 21/2 24/5 24/7 25/4 38/6 38/23 43/5 59/23 63/13 65/23
moot [7] 54/13 54/21 56/3 56/9 57/10 70/1 71/3
more [8] 17/21 27/21 28/5 30/24 31/19 39/18 63/13 68/21
motion [138]
motions [9] 6/8 42/10 46/20 46/21 47/1 51/18 53/24 64/17 73/12
move [3] 41/19 55/1 63/19
moved [1] 21/21
moving [2] 40/17 52/18
Mr [7] 10/9 30/23 42/16 45/18 50/21 59/9 60/4
Mr. [85]
Mr. Davis [45] 5/21 5/23 6/12 18/15 19/6 19/23 20/19 23/16 24/3 25/20 27/23 30/10 32/23 33/3 35/20 35/25 37/15 37/16 38/2 39/23 42/23 43/1 47/10 56/7 57/7 58/17 60/21 61/10 61/24 63/9 64/12 64/13 64/25 65/3 65/11 66/21 67/14 67/24 69/1 69/15 70/3 71/4 72/8 73/19 74/11
Mr. Davis' [5] 18/1 19/22 50/20 51/14 64/18
Mr. Hanson [34] 4/8 5/15 6/7 8/1 8/25 9/22 16/2 16/5 23/2 24/10 24/14 30/7 33/24 35/21 37/13 41/5 41/10 41/17 41/17 44/7 46/19 48/2 49/20 51/19 57/24 59/16 60/18 60/22 61/7 62/24 63/5 64/4 67/10 71/7
Mr. Hanson's [1] 12/15
Mrs. [10] 10/13 18/1 45/5 50/21 60/23 61/6 62/9 62/18 63/8 63/20
Mrs. Hanson [9] 10/13 18/1 45/5 60/23 61/6 62/9 62/18 63/8 63/20
Mrs. Hodz's [1] 50/21
Ms [1] 9/1
Ms. [10] 4/4 8/3 12/18 19/21 20/7 20/12 62/20 66/6 66/8 68/2
Ms. Brandy [1] 68/2
Ms. Hanson [5] 12/18 19/21 20/7 20/12 62/20
Ms. Hanson's [1] 4/4
Ms. Hodz [3] 8/3 66/6 66/8
much [1] 64/15
must [5] 17/18 40/2 67/11 68/12 68/16
my [84]
myself [2] 4/9 58/13

N

name [2] 55/4 55/6
navigated [1] 16/21
need [33] 5/20 10/13 10/25 11/4 11/5 11/6 11/15 11/17 16/2 16/4 16/16 18/6 18/7 18/12 19/2 20/11 22/23 22/25 23/2 32/16 32/17 38/14 43/9 45/15 46/8 46/15 47/10 49/14 52/5 64/12 70/6 72/14 72/16
needed [5] 27/8 29/10 48/24 51/23 65/24
needs [2] 20/13 64/13
negative [1] 55/5
neither [4] 6/2 27/1 48/4 48/7
never [3] 9/4 29/10 36/14
new [4] 11/18 13/21 21/24 41/24
next [13] 14/1 15/22 19/19 19/20 20/5 39/25 40/17 41/5 41/14 47/2 52/7 52/18 56/10
night [1] 10/23
nine [1] 25/4
no [55] 1/6 8/21 10/2 13/21 14/16 14/23 15/10 16/15 17/13 17/18 20/18 20/20 20/25 21/8 22/10 22/17 24/19 24/19 26/3 28/18 29/19 29/22 30/18 31/12 33/15 35/19 37/23 38/6 38/13 41/24 42/5 42/15 43/7 44/20 46/18 47/6 47/17 48/15 49/16 49/20 52/2 52/24 53/15 53/20 55/4 55/5 56/24 59/3 59/13 60/6 61/20 67/20 68/4 69/14 73/9
nobody [1] 54/2

3/8/2025 3:39 PM Electronically Filed: Hillsborough County/13th Judicial Circuit Page 81

N

noncompliance [1] 66/2
none [2] 38/9 60/9
normal [1] 40/16
not [112]
Notary [1] 1/19
note [2] 7/18 62/24
noted [1] 62/24
notes [9] 16/7 46/24 46/25 51/12 51/13 52/2 52/5 68/5 68/8
nothing [8] 24/19 26/10 43/4 45/23 55/10 60/17 64/1 65/22
notice [4] 5/13 21/21 59/6 70/9
November [1] 23/10
November 2023 [1] 23/10
now [15] 11/21 18/13 19/1 20/6 33/2 37/13 38/22 44/11 44/18 47/14 49/2 56/6 57/14 62/21 63/14
number [9] 12/1 33/24 44/2 56/17 60/20 61/24 62/12 62/12 73/17
numbered [1] 75/12
numbering [1] 12/2
numbers [1] 59/4
numerous [2] 4/13 44/13

O

o'clock [5] 67/17 67/18 67/21 71/13 71/13
oath [4] 33/15 34/23 39/3 68/17
object [4] 10/17 12/11 17/3 29/14
objected [1] 59/19
objecting [1] 60/4
objection [26] 10/18 11/3 11/5 11/23 11/25 12/3 17/5 21/22 26/23 28/20 41/16 43/21 44/11 47/3 50/18 50/21 52/20 53/8 53/12 55/19 57/3 57/16 58/21 58/25 59/3 59/8
objections [14] 11/24 13/4 13/7 55/13 62/25 63/4 71/11 71/17 71/25 72/1 72/2 72/3 72/24 73/8
obligation [1] 41/21
obtained [1] 16/14
obviously [1] 19/5
occasions [2] 13/24 46/19
occur [1] 45/2
October [17] 21/3 22/11 22/15 22/19 23/9 23/12 24/2 24/22 31/3 31/5 31/17 31/17 35/6 35/11 35/12 63/15 69/19
October 2023 [5] 22/15 22/19 24/2 31/17 31/17
October 22nd [2] 35/11 35/12
October 28th [4] 24/22 31/5 63/15 69/19
off [8] 9/15 24/8 24/21 35/5 36/21 46/17 61/11 73/13
offering [1] 62/8
office [7] 2/4 9/4 9/15 9/15 9/17 9/18 9/19
officer [4] 30/11 30/18 36/7 36/9
Oh [3] 42/20 58/19 59/2
okay [39] 5/12 10/15 11/21 12/7 14/18 15/16 15/21 16/8 17/11 22/6 22/18 23/11 27/18 31/4 32/19 33/20 34/3 36/17 37/21 42/13 43/2 43/24 44/7 47/12 48/20 52/10 52/12 54/17 55/25 56/12 57/10 60/20 67/10 67/13 68/7 69/11 73/11 74/4 74/8
once [4] 44/14 45/17 49/13 49/20
one [41] 13/15 13/23 16/7 17/18 28/5 32/10 33/24 36/6 36/14 37/6 38/6 41/20 44/2 44/6 47/24 50/11 50/15 54/3 54/25 55/4 55/5 55/6 55/13 58/18 58/19 58/20 58/21 58/23 58/24 59/15 61/8 62/12 63/19 65/23 67/19 71/5 71/22 72/4 72/16 73/2 73/9
only [30] 10/5 13/13 15/16 16/19 19/23 20/25 22/10 24/8 26/21 29/1 29/12 31/1 31/1 31/14 33/17 36/15 37/2 43/18 44/12 52/8 55/22 58/11 59/22 61/5 62/17 64/16 64/21 68/5 72/23 73/9
opportunity [4] 9/23 19/24 27/19 59/11
opposed [1] 5/10
option [1] 42/3
oral [1] 47/9
order [40] 4/17 4/20 5/10 5/12 13/23 14/11 14/15 15/8 15/18 15/18 15/25 18/22 24/21 31/5 41/15 51/7 51/13 51/15 52/21 54/12 54/13 54/14 57/11 58/23 59/9 63/16 63/25 66/11 67/21 69/18 70/10 70/24 71/5 71/7 72/6 72/13 72/18 72/25 73/1 73/21
ordered [1] 48/8
ore [2] 70/19 70/24
original [2] 20/24 35/9
other [29] 4/23 4/24 9/9 10/5 11/10 17/10 17/19 20/3 20/9 21/8 27/19 28/12 31/12 31/18 31/20 32/10 33/15 35/4 37/23 37/24 38/10 38/13 39/12 41/12 42/7 63/3 67/12 71/2 72/14
others [1] 24/7
otherwise [2] 39/5 68/19
our [8] 16/17 29/1 29/13 50/6 58/21 63/22 72/13 74/2
out [15] 14/25 17/25 27/22 31/4 35/23 44/1 47/4 50/14 53/3 56/21 63/7 63/11 67/9 69/2 73/17
outside [2] 25/19 26/2
over [18] 8/25 19/10 19/10 19/11 20/9 21/22 22/12 24/20 27/14 29/2 49/9 49/14 49/22 54/25 56/24 62/3 62/16 66/10
overrule [5] 43/21 47/3 55/12 55/19 57/16
overruled [1] 71/11
overruling [1] 57/3
own [1] 62/21

P

p.m [5] 1/17 71/8 71/14 72/24 74/17
PA [1] 62/4
page [6] 3/2 8/5 8/13 8/15 9/10 68/3
pages [4] 6/9 16/24 26/19 75/12
paid [1] 29/5
paper [1] 6/7
Para [4] 46/3 46/3 47/18 48/21
paragraph [8] 8/11 20/16 22/9 39/7 40/23 42/11 59/15 69/8
paragraphs [1] 6/9
paralegal [4] 30/15 36/5 36/8 62/22
paraphrased [1] 69/15
parent [1] 63/20
part [3] 34/4 47/3 62/14
particularity [1] 68/13
particularly [1] 39/1
parties [3] 42/14 51/17 68/11
parts [1] 73/2
party [6] 48/4 48/7 63/1 68/16 68/16 68/19
past [1] 31/16
pasted [2] 27/23 30/1
pattern [5] 17/23 18/12 19/7 19/10 65/22
pause [2] 18/18 35/20
pay [1] 60/3
paychecks [1] 59/25
penalties [1] 40/8
pending [2] 58/15 62/14
people [3] 7/5 38/20 55/3
per [1] 74/10
percent [1] 30/18
perfect [4] 18/17 20/23 47/25 54/21
perfectly [1] 24/24
Perhaps [1] 26/5
period [6] 21/10 21/10 21/19 21/19 31/21 37/25
periods [2] 31/13 33/16
perjury [2] 36/4 40/8
permitted [3] 53/17 65/9 65/10
person [1] 71/16
personal [1] 28/6
personally [1] 36/4
petition [1] 46/9
Petitioner [4] 1/5 2/2 4/7 62/1
Petitioner/Wife [2] 1/5 2/2
phonetic [2] 46/4 47/24
place [2] 9/18 34/20
places [1] 61/17
playing [1] 22/4
pleaded [1] 64/24
pleading [4] 16/15 28/13 35/1 35/2
please [9] 4/4 6/8 7/18 9/24 28/17 32/18 42/8 70/4 71/2
plenty [1] 10/7
plus [1] 17/1
PMA [20] 45/5 45/13 47/5 47/9 47/21 48/4 48/7 48/9 48/15 49/1 49/3 49/13 50/11 50/15 52/24 53/5 53/17 54/1 57/1 60/13
pointed [1] 14/25
portion [2] 9/2 9/10
position [2] 24/9 52/4
positions [1] 44/3
post [7] 2/4 9/17 23/5 44/11 44/19 50/20 60/16
post-hearing [1] 50/20
post-judgment [3] 44/11 44/19 60/16
postmarital [6] 23/13 23/14 25/14 25/16 44/4 59/23
postnuptial [1] 59/18
precaution [1] 36/13
precise [1] 22/1
prejudgment [2] 44/19 60/16
prejudice [3] 30/3 30/8 39/22
premarital [1] 23/13
prepare [3] 19/25 64/14 71/4
prepared [3] 5/8 11/24 19/23
present [2] 4/3 5/3
previously [1] 34/18
printed [4] 42/9 42/9 58/20 72/4
prior [5] 4/11 8/3 23/11 24/2 62/4
prioritize [1] 11/11
privilege [3] 62/23 63/1 63/2
privileged [1] 62/25
pro [4] 2/8 25/23 27/4 27/20
probably [2] 13/5 34/10
problem [8] 12/4 19/10 22/1 22/2 24/15 35/25 36/17 37/22
problematic [3] 5/24 6/1 55/6
Procedure [2] 27/6 41/1
proceed [1] 4/15
proceeding [1] 60/15
proceedings [5] 1/11 3/2 74/17 75/10 75/15
process [7] 7/6 10/21 21/25 21/25 27/8 44/5 64/11
procure [1] 9/18
produce [3] 24/18 47/23 73/7
produced [1] 25/17
producing [1] 62/6
Product [1] 62/23
production [5] 58/22

3/8/2025 3:39 PM Electronically Filed: Hillsborough County/13th Judicial Circuit Page 82

P

production... [4] 59/8 62/9 62/10 63/1
prolonging [1] 55/9
proof [2] 51/14 51/15
proper [1] 53/14
protections [1] 45/13
protective [2] 58/23 59/9
proud [1] 5/22
provide [9] 8/1 11/1 11/4 12/3 25/2 25/3 28/3 29/5 30/22
provided [13] 4/14 8/20 9/21 12/10 22/3 23/20 24/13 33/8 33/14 36/16 38/7 38/12 57/25
provides [2] 24/4 24/5
providing [1] 14/15
Public [1] 1/19
published [1] 61/14
pull [1] 42/20
purpose [2] 41/7 65/18
purposes [3] 54/5 61/5 62/17
pursuant [1] 40/7
pursue [5] 25/11 28/11 28/12 29/11 50/13
pursuing [1] 28/24
pushed [1] 18/11
put [10] 18/14 19/24 24/21 29/1 33/21 35/5 44/17 46/15 63/11 69/8

Q

question [18] 15/16 26/25 27/20 28/4 28/5 28/17 28/21 28/22 29/15 29/18 29/21 38/3 38/11 41/6 41/20 43/6 51/19 51/20
questions [8] 6/15 26/14 29/24 31/7 41/12 43/1 43/21 45/3
quick [1] 67/24
quickly [1] 72/5
quite [1] 28/2

R

Raise [1] 26/6
rather [2] 55/7 63/24
Ray [4] 46/3 46/3 47/18 48/21
RE [1] 1/4
reach [1] 73/17
reached [1] 26/20
reaction [1] 16/17
read [12] 6/2 6/7 24/25 40/9 40/14 52/6 54/1 67/23 72/3 72/4 72/5 73/24
ready [1] 16/8
real [1] 21/22
really [11] 10/23 27/21 29/6 30/1 36/14 54/13 57/15 59/14 64/4 72/14 72/16
rearranged [1] 9/7
reason [4] 26/19 42/25 43/3 56/23
reasonable [2] 25/12 48/23
reasonableness [2] 12/21 48/9
reasonably [2] 61/3 62/18
recall [4] 13/16 51/1 51/6 51/11
recognize [1] 30/17
reconsideration [2] 13/15 13/20
record [15] 4/10 6/25 7/1 7/2 7/13 7/23 8/7 8/9 14/8 30/25 33/21 34/21 46/16 54/5 62/2
records [35] 9/3 9/8 9/11 9/13 16/25 16/25 18/2 19/9 21/23 22/1 22/4 22/21 23/3 23/4 24/6 24/9 25/11 27/21 29/5 30/2 47/5 55/1 55/22 57/18 57/19 57/25 62/5 62/10 62/11 63/8 63/8 63/9 63/11 65/4 66/11
redline [1] 16/23
referencing [1] 62/6
referring [3] 5/21 8/10 9/6
refile [2] 70/23 71/1
reflect [1] 4/10
regard [1] 12/19
regarding [6] 5/11 8/18 9/1 50/19 52/21 57/24
rehearing [11] 13/15 13/17 13/20 54/6 54/22 56/4 56/9 56/23 57/11 70/2 71/4
related [2] 26/14 58/15
relates [3] 16/11 18/2 61/18
relating [1] 8/1
relevance [7] 10/12 17/4 17/6 17/7 26/23 28/20 29/14
relevant [7] 10/16 21/1 22/11 22/14 61/3 62/13 63/22
relevent [3] 9/2 9/10 22/8
relief [1] 43/19
remind [1] 23/7
report [2] 75/9 75/14
REPORTED [1] 1/18
reporter [3] 20/10 75/4 75/9
Reporter's [1] 75/14
representation [1] 62/3
representative [2] 60/24 62/1
representatives [2] 60/25 61/1
represented [1] 27/1
request [8] 12/2 25/18 44/9 58/22 59/8 62/12 62/25 62/25
requested [3] 25/24 26/2 43/20
requesting [2] 16/24 23/17
requests [5] 47/2 50/18 52/20 53/9 73/6
require [3] 39/17 39/20 66/18
required [15] 21/11 23/21 24/11 25/3 31/13 32/4 33/16 33/17 40/12 40/25 41/9 41/25 58/10 63/2 69/5
requirements [4] 16/18 17/17 20/21 37/23
requires [5] 30/6 31/8 31/10 31/19 63/20
requiring [1] 66/11
res [1] 57/25
reschedule [1] 73/18
research [3] 10/22 21/24 74/14
reservation [2] 15/2 15/5
reserve [3] 12/20 12/22 13/6
reserved [1] 14/12
reserving [1] 14/23
resolved [1] 61/10
respect [7] 4/13 10/20 13/17 17/5 17/17 36/12 73/2
respectfully [4] 9/16 17/3 24/10 47/2
respond [3] 10/25 37/16 39/25
responded [2] 16/23 37/1
Respondent [3] 1/8 2/7 41/14
Respondent's [1] 15/24
Respondent/Husband [2] 1/8 2/7
response [9] 12/8 23/17 24/3 24/14 28/10 59/20 61/7 63/5 65/23
responses [1] 24/19
responsible [3] 30/17 36/8 37/15
rest [1] 72/24
review [13] 7/21 8/18 11/23 21/23 44/15 50/7 50/24 51/4 51/12 51/12 51/24 51/24 59/12
reviewed [2] 51/1 51/20
reviewing [3] 10/4 27/16 51/11
right [38] 4/2 9/20 9/22 11/23 12/12 13/1 13/2 13/22 14/16 15/22 16/4 19/1 20/6 22/20 23/16 26/6 32/5 36/11 38/21 39/15 39/25 42/1 42/21 44/11 44/18 45/1 45/2 47/13 49/2 49/19 49/20 50/22 52/7 60/14 60/20 62/21 67/20 68/10
ripe [1] 44/12
robbed [1] 45/12
row [1] 60/1
RPR [2] 1/18 75/22
rule [73] 10/19 13/14 20/2 20/21 21/12 24/7 24/12 24/12 24/24 25/19 25/20 26/2 30/5 30/10 30/12 31/8 31/10 31/13 31/18 31/21 32/1 32/4 33/6 33/16 33/17 34/7 34/15 35/3 35/7 35/8 36/2 37/25 38/11 38/15 39/5 39/16 39/20 39/21 39/24 40/3 40/12 40/15 40/25 41/10 49/6 49/7 49/10 50/23 50/23 51/23 52/1 53/11 55/18 55/21 58/8 58/10 58/11 63/18 64/7 67/2 67/5 67/9 67/11 67/25 68/18 69/5 69/14 70/17 70/18 70/20 70/23 70/25 71/23
ruled [8] 41/5 41/8 42/5 55/17 56/8 56/22 63/3 66/13
rules [12] 19/8 24/16 27/6 27/6 38/19 41/10 41/11 41/13 49/11 64/5 66/16 66/18
ruling [5] 41/21 43/25 52/4 53/9 74/12

S

said [18] 6/7 7/9 9/11 14/14 14/23 15/11 16/13 32/6 39/6 40/14 41/23 48/4 48/7 51/13 51/21 60/2 75/14 75/15
same [8] 5/13 8/16 12/19 13/21 32/14 50/21 63/6 65/2
sanction [1] 19/21
SARAH [3] 1/4 4/7 26/8
satisfy [1] 70/5
save [2] 22/12 59/15
saw [1] 6/9
say [28] 5/14 5/15 7/12 10/5 13/3 19/18 22/9 27/19 30/18 31/4 33/6 33/7 38/9 38/13 39/11 40/6 40/13 47/19 54/24 55/10 56/14 57/23 58/11 60/9 61/16 61/20 63/14 63/25
saying [17] 5/17 14/10 22/13 31/16 34/24 38/17 44/17 45/9 46/10 46/22 49/17 50/16 52/23 53/14 53/14 57/22 60/7
says [18] 9/13 31/15 35/3 38/19 40/2 40/14 40/14 40/23 42/14 46/6 47/20 48/2 55/18 64/1 67/8 67/11 69/14 70/17
scan [2] 9/16 36/6
scanned [3] 9/5 9/8 9/19
scanner [2] 9/14 9/18
scares [1] 61/10
scary [1] 64/5
schedule [4] 6/15 66/3 66/9 73/19
scheduled [2] 73/13 73/16
scott [4] 2/3 2/5 4/6 62/1
screen [1] 37/19
se [4] 2/8 25/23 27/4 27/20
second [5] 25/18 35/21 58/22 59/8 71/5
Section [1] 40/7
see [19] 5/4 13/3 13/6 19/5 19/7 31/23 35/16 36/17 37/20 38/17 43/9 43/13 43/19 46/8 49/1 56/14 65/1 68/8 72/10
seeking [2] 13/25 60/22
select [1] 4/24
send [6] 32/13 55/7 62/25 70/13 70/23 71/1
sending [5] 6/11 6/13 16/24 63/14 66/10
sent [3] 8/2 27/2 27/22
separate [1] 19/6
separation [1] 26/21
service [3] 39/3 41/24 68/15
set [7] 11/3 46/23 50/12 58/18 58/21 60/18 75/16

S

setting [3] 4/16 71/7 72/20
settling [1] 49/13
several [1] 12/16
she [97]
she's [12] 6/3 6/14 7/5 22/20 23/20 27/20 31/14 31/16 33/12 33/13 35/7 50/5
shocked [1] 38/19
shorthand [1] 75/14
shot [1] 25/11
should [14] 4/17 4/21 9/12 11/19 12/3 34/10 35/17 44/3 50/14 50/17 52/19 53/7 53/18 62/15
shouldn't [3] 4/23 45/12 72/7
show [21] 4/17 4/20 5/13 7/13 8/23 36/19 37/13 46/2 46/5 47/17 47/20 49/7 67/10 67/22 71/7 72/7 72/13 72/18 72/25 73/1 73/21
showed [2] 6/6 46/18
showing [1] 10/2
side [1] 4/4
sides [1] 51/23
sign [4] 18/5 34/22 49/13 69/9
signed [5] 21/3 35/5 45/5 53/18 59/24
signs [2] 41/3 69/3
simple [3] 6/15 18/9 46/14
since [3] 8/20 63/15 69/18
single [3] 16/12 24/11 33/25
singular [1] 19/15
sir [4] 14/1 29/22 58/10 66/14
skirting [1] 24/16
sleeping [1] 10/23
so [118]
sold [1] 38/22
some [11] 9/3 11/18 12/11 12/11 37/14 38/22 42/15 50/13 52/9 63/21 64/25
somehow [2] 19/21 32/12
someone [2] 63/10 63/10
something [16] 5/14 11/19 20/1 28/25 30/25 31/6 33/7 34/12 34/18 35/8 36/2 43/4 49/23 52/13 58/6 70/16
sooner [1] 63/24
sorry [11] 6/24 14/2 15/5 30/4 35/23 36/21 39/8 39/8 42/21 58/24 59/2
sought [2] 61/5 62/17
speaks [2] 7/25 59/14
specific [6] 11/2 34/6 34/13 63/11 70/17 70/22
specifically [4] 34/14 42/24 55/24 57/17
specificity [1] 68/19
speed [1] 21/24
sponte [1] 4/16
spouse [1] 22/22
stack [1] 9/13
staff [1] 36/12
stamp [1] 71/3
started [2] 31/3 64/5
starting [3] 4/3 4/11 7/18
starts [1] 20/18
state [8] 1/1 1/19 32/11 38/12 45/2 75/2 75/6 75/17
stated [3] 29/24 74/9 75/11
statement [1] 58/12
statements [3] 21/17 23/18 38/7
states [2] 41/2 41/3
stating [2] 31/25 32/9
statutes [2] 40/8 64/8
stenographically [1] 75/10
still [5] 27/4 46/7 48/8 51/12 58/15
stipulated [7] 22/4 24/18 30/25 35/6 42/14 70/20 70/24
stipulating [3] 43/3 52/13 70/5
stop [17] 19/15 20/9 21/5 22/9 23/2 23/16 29/8 39/10 39/13 39/16 39/16 40/21 46/12 47/19 49/15 53/7 64/10
store [1] 9/19
story [1] 74/7
strategic [1] 65/21
strategically [4] 31/15 35/2 63/10 66/1
strategy [2] 62/6 62/10
strictly [1] 33/6
Strike [1] 58/14
stuff [3] 20/4 28/6 72/25
styled [1] 75/11
sua [1] 4/16
subject [3] 36/10 62/13 68/11
submits [1] 40/23
subpoena [7] 43/22 44/1 47/4 50/18 53/3 55/11 55/23
subpoenas [6] 41/16 52/20 52/22 53/8 56/21 56/24
such [1] 35/25
sudden [1] 64/5
sufficient [2] 30/2 32/13
suggest [1] 18/16
suggests [1] 9/5
Suit [1] 58/17
supplement [2] 38/20 38/23
support [7] 41/1 43/11 48/21 51/15 59/16 59/18 60/11
supporting [1] 53/12
supposed [2] 44/4 66/25
sure [23] 6/21 16/3 18/8 18/18 18/20 19/4 22/13 26/16 32/8 32/11 32/22 33/1 36/5 36/7 36/11 36/11 36/15 38/18 43/14 43/20 44/25 69/25 70/12
suspicious [1] 63/12
sustain [3] 50/17 52/19 53/8
Sustained [1] 29/16
swear [32] 17/18 30/5 31/8 31/8 31/9 31/11 31/20 33/10 33/12 33/13 33/18 34/22 34/25 35/9 36/1 37/22 37/25 38/13 39/3 40/2 40/5 58/7 66/16 66/19 66/24 66/25 67/2 67/4 67/8 67/11 68/16 69/5
swearing [4] 22/2 22/10 33/15 35/7
swears [1] 32/11
sworn [1] 26/9

T

tactics [1] 53/10
take [10] 9/12 11/9 11/12 11/16 21/3 39/19 41/8 41/13 47/20 67/6
taken [4] 1/14 25/5 36/8 69/21
taking [1] 36/13
talk [5] 15/3 20/9 64/11 64/22 74/5
talked [2] 37/2 65/12
talks [1] 53/16
Tampa [4] 1/15 2/3 2/4 75/17
tax [1] 24/9
teachers [1] 55/8
tell [22] 8/17 11/2 11/16 11/24 18/7 20/5 20/11 20/23 21/5 21/25 23/3 26/9 29/4 35/21 45/19 47/11 48/2 57/15 73/17 73/18 74/10 74/11
telling [12] 12/2 19/1 27/24 37/15 45/11 55/3 57/6 57/14 61/15 64/2 64/21 74/3
tells [1] 6/25
tenus [2] 70/19 70/24
term [3] 48/4 48/5 48/7
terms [4] 5/20 5/23 13/9 14/2
testified [1] 26/11
testify [1] 66/6
text [3] 27/2 50/7 61/2
than [8] 17/19 18/17 28/12 29/2 31/19 39/18 55/7 63/25
Thank [2] 15/21 35/14
that [313]
that's [46] 6/3 6/9 6/16 6/20 7/1 8/4 12/8 16/8 17/8 17/24 19/9 20/1 20/1 21/13 22/7 23/12 24/4 25/3 25/12 27/22 35/6 35/15 38/14 40/12 40/19 46/8 47/6 48/15 51/19 53/18 54/8 54/18 55/13 56/12 57/5 58/18 59/3 60/12 64/6 64/16 65/13 66/7 67/21 68/22 69/6 72/10
their [9] 4/12 15/12 25/9 51/23 52/1 55/12 57/3 57/16 70/21
them [53] 4/12 6/2 6/22 9/5 9/6 9/8 9/14 9/16 9/17 9/19 9/21 10/14 12/1 12/2 13/15 15/4 15/5 15/14 15/14 15/15 18/14 21/7 21/18 25/2 25/8 25/9 30/5 30/6 30/22 32/13 38/8 39/25 41/11 41/13 42/9 47/25 52/3 52/6 52/23 55/2 55/7 64/6 64/11 66/9 66/11 66/15 66/18 69/2 69/4 71/12 71/23 73/8 74/12
then [29] 4/22 9/9 11/3 14/8 19/19 23/15 24/20 32/8 37/16 40/18 48/23 49/17 49/25 50/13 52/4 60/9 63/12 63/13 63/16 68/4 71/2 71/4 72/6 72/10 73/3 73/12 74/8 74/11 74/12
there [55] 5/20 6/15 7/5 7/25 11/18 13/13 13/20 16/16 17/21 18/4 23/16 25/5 30/18 35/1 38/13 38/18 44/19 45/17 46/9 46/22 47/6 48/4 48/6 48/12 48/15 48/22 49/8 49/10 49/11 49/16 50/13 51/9 52/4 52/24 53/14 53/15 53/20 53/22 53/24 55/10 55/11 55/20 56/24 57/14 57/20 59/21 60/16 61/8 62/2 63/25 66/11 70/3 70/10 71/20 73/6
Thereupon [2] 26/7 74/17
these [18] 8/18 8/22 10/14 19/6 31/7 42/24 43/20 46/19 46/20 46/25 51/10 52/10 52/20 53/8 63/7 63/21 64/7 74/17
they [46] 15/11 17/18 19/1 20/19 20/20 21/18 22/3 22/4 24/17 24/18 24/20 30/10 30/25 31/2 35/5 39/11 39/11 39/20 40/16 48/14 55/6 58/3 58/7 58/12 60/7 60/7 60/8 60/9 61/19 61/20 63/8 64/7 64/10 64/14 66/3 66/9 67/2 67/4 67/8 67/9 69/18 70/17 70/18 70/20 70/24 70/25
they're [18] 10/16 22/2 22/3 24/16 25/3 52/25 55/8 58/6 60/4 60/6 61/19 63/7 63/17 68/22 68/23 68/25 69/17 70/21
they've [4] 37/1 37/2 55/16 55/23
thing [10] 10/5 24/8 31/1 54/3 55/6 59/22 63/6 65/2 65/23 69/6
things [22] 10/22 11/10 11/14 15/7 16/18 17/10 17/24 18/2 24/18 25/6 27/19 27/22 38/20 38/24 49/12 50/3 50/6 52/10 54/24 65/18 72/23 73/23
think [22] 7/9 7/10 7/24 10/15 11/8 11/19 13/4 23/9 25/12 31/22 34/23 38/9 48/12 59/14 59/21 60/8 61/22 69/1 69/5 73/25 74/2 74/6
thinks [2] 11/25 34/6
third [3] 38/8 38/8 65/1
THIRTEENTH [2] 1/1 75/5

3/8/2025 3:39 PM Electronically Filed: Hillsborough County/13th Judicial Circuit Page 84

T

this [63] 4/11 4/13 7/6 13/13 14/16 14/22 15/10 17/2 17/7 18/21 18/23 19/12 19/25 20/4 20/6 20/10 24/17 26/15 27/18 28/7 29/1 29/2 29/11 29/13 29/22 30/25 36/18 38/4 39/14 40/16 41/18 42/7 43/10 43/15 45/23 46/17 48/21 48/22 49/9 52/14 54/6 54/19 54/21 55/9 55/9 55/14 55/21 56/9 56/9 56/12 56/19 56/20 57/10 58/4 62/3 62/15 62/16 62/24 66/25 67/22 68/18 69/19 75/18
those [10] 15/3 17/19 21/9 26/19 27/7 27/16 44/16 50/3 65/6 67/19
though [6] 48/6 51/8 53/20 66/11 70/3 73/23
thought [11] 14/14 15/13 27/8 27/9 27/15 43/14 46/16 54/19 55/14 59/5 72/12
threaten [1] 28/12
threatened [1] 28/11
three [15] 10/23 22/21 23/4 23/11 23/17 24/2 24/8 25/8 25/9 44/5 47/4 50/11 59/25 61/24 71/14
through [18] 8/3 8/6 8/14 8/20 12/1 24/6 29/1 29/13 42/11 42/22 50/3 50/7 55/2 55/15 63/14 71/20 72/6 75/9
throughout [1] 38/20
thus [1] 4/15
time [26] 1/17 5/13 8/6 10/7 11/9 11/12 11/16 18/19 24/25 25/13 26/13 27/4 28/24 29/12 32/16 36/24 40/20 52/9 55/20 55/21 59/15 65/5 65/5 67/16 71/19 73/8
timeframe [1] 28/4
timeline [4] 52/22 54/10 62/6 62/9
timelines [1] 13/11
times [2] 44/13 63/9
timing [2] 5/2 63/18
today [9] 12/4 15/15 22/16 30/14 46/23 54/19 55/14 63/16 73/10
together [2] 12/22 28/6
told [13] 16/23 25/15 28/14 44/10 44/12 44/18 46/19 46/22 51/2 51/2 51/21 55/2 66/8
toll [1] 25/5
too [2] 13/13 69/20
took [3] 46/17 52/3 59/24
top [2] 24/8 73/13
TRANSCRIPT [1] 1/11
transcription [1] 75/14
treated [1] 12/19
trial [5] 38/21 44/12 48/6 48/8 74/16
trickle [2] 24/20 65/21
trickled [1] 63/10
trickling [1] 31/4
tried [2] 64/15 66/3
true [6] 40/11 40/14 40/15 66/5 66/7 75/13
truth [6] 25/2 26/9 26/10 26/10 61/15 64/2
try [3] 9/7 25/11 61/9
trying [23] 6/3 10/24 11/7 11/8 11/10 18/14 19/14 25/4 27/13 29/22 30/1 38/25 43/16 45/21 50/2 59/15 61/11 61/18 63/7 68/22 68/23 68/25 69/17
turns [1] 47/20
two [19] 6/9 6/18 12/5 20/19 21/13 21/15 32/18 38/8 50/11 60/20 62/3 62/12 65/3 69/21 72/9 73/2 73/4 73/5 73/6

U

ugly [1] 29/11
under [9] 30/9 33/15 34/6 34/14 34/23 39/3 40/8 53/11 68/17
undersigned [1] 75/9
understand [9] 5/16 5/19 5/24 5/25 7/4 19/14 34/16 38/2 58/4
understanding [4] 6/5 6/11 6/16 21/13
unfortunate [1] 40/22
unfortunately [1] 18/25
unkind [1] 27/19
unless [7] 11/18 37/13 39/5 49/22 60/17 66/8 68/18
unreasonable [1] 48/24
until [9] 13/6 31/3 33/3 34/11 35/6 49/3 53/15 60/18 63/2
up [17] 8/8 13/13 14/1 15/23 16/13 21/21 21/24 25/21 28/4 38/21 38/24 41/10 41/12 42/20 47/5 58/13 64/5
update [1] 70/7
updated [1] 70/8
upon [4] 10/12 16/17 55/20 57/13
UPS [1] 9/19
us [4] 28/13 29/1 51/2 51/3
use [7] 27/18 29/22 40/17 55/21 69/3 70/22 70/25
used [2] 51/14 69/1

V

vague [5] 59/19 60/5 60/5 60/6 62/12
valid [4] 47/11 49/3 53/18 60/17
validity [6] 44/13 44/18 46/7 47/21 53/16 56/25
Verification [1] 40/7
Versus [1] 14/25
very [7] 9/7 18/8 25/12 31/14 36/20 63/11 74/3
view [2] 17/2 44/23
violation [3] 19/8 56/12 69/18
violations [8] 51/10 55/12 55/16 55/20 55/24 56/20 57/3 57/17
void [1] 47/9

W

wait [3] 13/3 31/2 34/11
waiver [1] 53/12
waiving [1] 53/13
want [52] 5/14 5/15 6/8 6/25 7/15 8/6 10/14 12/11 17/1 18/18 19/21 20/6 21/6 21/7 21/17 21/18 22/18 22/25 23/3 23/11 26/14 30/15 31/11 31/19 33/21 34/20 36/4 36/22 41/9 41/12 43/21 43/25 44/13 46/5 47/17 47/20 50/1 50/2 52/3 53/2 55/7 55/15 56/6 57/18 57/23 68/8 70/23 72/19 73/16 73/20 73/25 74/12
wanted [4] 10/5 29/11 31/2 55/13
wants [8] 9/14 19/6 24/12 34/5 36/7 38/17 50/25 74/9
warning [1] 25/11
was [56] 7/16 10/6 10/7 13/21 16/19 16/22 16/23 22/21 23/9 23/14 23/15 24/25 25/23 26/4 26/10 26/19 26/21 27/12 27/14 27/20 27/21 28/1 28/13 28/14 29/1 29/6 29/10 29/12 29/25 30/1 32/23 33/7 42/25 43/15 46/22 46/23 46/24 48/3 48/4 48/6 48/17 49/16 51/8 54/8 54/11 54/18 56/6 59/15 59/24 60/2 61/22 64/18 71/10 72/12 72/18 75/8
wasn't [3] 27/1 27/16 28/25
waste [1] 8/6
way [7] 8/14 28/12 29/2 48/16 61/19 61/20 63/11
we [40] 4/3 4/15 4/25 7/18 8/2 8/3 12/15 16/21 18/12 20/9 20/10 23/22 26/20 27/4 32/3 33/6 42/23 44/2 45/5 47/1 47/1 47/19 48/5 54/25 55/14 63/14 64/6 64/21 64/25 65/7 70/7 72/1 72/5 72/6 73/7 73/18 74/4 74/4 74/8 74/10
we're [9] 4/2 5/1 5/12 22/6 26/13 27/18 71/6 71/12 73/9
we've [2] 13/22 73/12
weekends [1] 12/6
weeks [2] 21/22 32/18
welcome [2] 15/22 66/6
welfare [1] 27/14
well [15] 9/7 10/11 10/18 18/4 20/3 20/5 23/23 37/17 40/18 43/2 47/24 48/3 51/22 63/23 70/14
well-being [1] 63/23
went [5] 9/4 27/5 29/25 46/24 65/4
were [14] 12/15 15/14 16/19 22/12 25/10 27/2 27/4 27/12 28/16 32/10 43/15 58/3 71/11 74/17
weren't [2] 55/14 66/10
what [115]
what's [7] 31/9 41/6 43/3 58/7 64/22 66/16 67/8
when [30] 4/19 13/24 14/25 15/11 16/13 16/14 16/22 18/5 18/15 23/12 25/12 25/23 26/20 28/13 32/10 34/18 35/4 37/1 47/1 50/15 51/23 52/22 55/21 56/8 58/7 69/3 71/6 74/4 74/8 74/10
where [21] 7/1 13/14 16/16 16/22 17/18 19/7 28/24 28/25 29/2 31/15 37/13 37/22 37/25 40/6 46/10 48/4 55/25 65/2 65/13 67/11 70/18
WHEREOF [1] 75/16
whether [6] 15/17 26/22 41/20 48/23 51/3 52/10
which [20] 8/16 9/5 9/15 9/16 14/23 18/11 21/3 30/16 32/11 33/5 35/5 35/10 36/10 37/6 40/3 46/23 48/9 60/8 63/9 70/20
while [4] 4/23 5/5 10/4 38/24
who [1] 5/4
whole [3] 7/8 26/10 43/15
why [23] 4/17 4/21 11/24 12/3 17/25 26/5 27/22 42/23 43/25 47/10 47/11 48/15 54/9 54/18 56/21 57/2 57/15 58/4 64/6 68/23 68/23 68/24 72/7
wife [9] 1/5 2/2 20/18 20/25 22/10 41/2 49/21 59/16 60/12
Wife's [8] 7/17 50/17 52/19 53/8 53/10 58/14 58/25 59/7
will [28] 4/20 4/22 4/24 7/18 8/16 9/7 12/9 31/24 32/19 33/5 34/19 37/16 39/24 65/4 66/5 67/13 67/23 67/23 69/7 69/24 70/6 70/10 70/25 71/1 71/4 72/3 72/23 74/4
willing [1] 39/19
wise [1] 54/10
withdrew [1] 21/21
withholdings [1] 59/25
within [4] 17/2 27/6 31/25 62/22
without [9] 13/14 13/23 14/3 14/15 15/9 16/21 30/3 30/8 39/21
witness [3] 3/2 26/9 75/16
won [3] 58/4 66/14 66/17
won't [1] 72/14
wonderful [1] 20/10
Word [1] 71/2
worded [2] 31/14 35/2
work [3] 32/1 62/23 64/15

3/8/2025 3:39 PM Electronically Filed: Hillsborough County/13th Judicial Circuit Page 85

W

works [1] 20/2
worse [1] 29/2
would [37] 12/18 14/8 16/1 16/13 19/22 20/17 21/3 22/13 23/21 23/25 24/1 26/22 28/3 32/20 32/24 38/19 39/17 41/17 43/2 44/15 51/22 52/9 54/23 54/24 54/25 54/25 56/21 61/22 63/14 63/24 64/1 64/4 69/2 69/4 69/19 69/20 70/4
wouldn't [3] 29/3 58/7 61/21
writing [2] 44/10 44/17
written [1] 74/6
wrong [6] 58/19 58/20 59/5 71/10 72/4 72/4
wrote [1] 68/3

Y

yeah [3] 36/25 70/15 74/15
year [2] 31/16 35/4
years [15] 17/1 21/14 21/15 22/21 23/4 23/11 23/17 24/2 25/8 25/9 38/5 44/5 47/4 50/8 60/1
yes [35] 7/19 7/23 7/24 8/12 8/14 10/4 12/14 12/23 12/25 14/7 16/10 25/25 26/12 28/8 30/18 32/3 32/7 33/19 34/8 34/16 35/15 35/20 37/10 41/22 42/22 43/23 45/16 54/4 54/16 68/1 69/10 69/16 71/15 72/22 73/15
yesterday [6] 54/15 54/22 56/4 56/9 56/22 57/12
yet [2] 48/13 71/23
you [329]
you'll [1] 74/11
you're [30] 5/5 5/17 5/21 8/23 13/25 15/2 15/17 15/22 19/1 27/25 29/22 30/4 34/6 34/24 36/1 36/22 36/25 37/21 39/15 40/2 40/18 43/13 49/4 49/13 56/2 57/14 57/22 64/21 65/10 66/15
you've [3] 7/9 13/16 18/24
your [139]
yours [3] 13/21 16/1 42/18

Z

Zoom [1] 47/1

3/8/2025 3:39 PM Electronically Filed: Hillsborough County/13th Judicial Circuit Page 86